

# Home Care Plus Home Insurance Plan 家安心家居保障計劃

Policy Wording  
保單條款

CHUBB®

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The English version is the official version. If any dispute arises regarding the interpretation of any part of this **Policy**, the English version shall prevail.

## Part 1. General Advice

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**You** should consider the appropriateness of this product having regard to **Your** objectives, financial situation and needs. **You** need to decide if the limits, type and level of cover are appropriate for **You**.

## Part 2. About The Insurer

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**Chubb Insurance Hong Kong Limited** (a company incorporated in Hong Kong and having its registered office address at 39/F, One Taikoo Place, 979 King's Road, Quarry Bay, Hong Kong) ("**Chubb**") is the insurer of this product. In this **Policy Wording**, "**We**", "**Us**", "**Our**" means Chubb Insurance Hong Kong Limited. **Our** contact details are:

O +852 3191 6800

E [Inquiries.HK@chubb.com](mailto:Inquiries.HK@chubb.com)

## Part 3. Cover We Can Offer

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When **You** applied for this insurance, **You** completed an application. **We** have relied upon the information supplied to decide the terms of cover **We** will provide. The information **You** have provided shall form the basis of this contract of insurance. **We** provide cover to **You** on the terms contained in the application, the **Policy Wording** and any other document including the most recent **Policy Schedule** that **We** issue to **You**.

The **Policy Schedule** will contain important information relevant to **Your** insurance including the **Commencement Date**, **Your** premium, the limits that **You** want for particular covers, and whether any standard terms need to be varied by way of endorsement.

All of these make up **Your Policy** with **Us**.

## Part 4. Important Information Regarding Your Policy

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### Your Policy

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**Your Policy Wording** and **Policy Schedule** describe the insurance contract between **You** and **Us**.

In return for **You** paying **Us** the premium, **We** insure **You** for the events subject to the terms, conditions and exclusions in **Your Policy Wording** and **Policy Schedule**.

Please read **Your Policy**.

It is important that **You** carefully read and understand **Your Policy Wording** and **Policy Schedule** because they describe the terms, conditions and exclusions that apply to **Your** insurance under **Your Policy**.

### Checking Your Policy

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Please check **Your Policy Wording** and **Policy Schedule** to make sure all the information on them is correct. Please let **Us** know straight away if any alteration is needed. Please contact **Us** if **You** change **Your** address or account details.

### Duty of Disclosure

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Before **You** enter into **Your Policy** with **Us**, **You** must disclose fully and faithfully all the facts which **You** know or ought to know, which are relevant to **Us** in providing insurance to **You** and the premium **We** calculate. If **You** do not do so, **We** may have rights to cancel this insurance, or to refuse to pay **Your** claims or **You** may receive no **Benefit** from the **Policy**.

The insurance cover under this **Policy** is based on the information submitted by **You** to **Us**, in the proposal form. If **You** provided **Us** with any information that is incorrect, please notify **Us** immediately, otherwise **You** may receive no **Benefit** in the event of a valid claim.

If the information, which **You** subsequently provide **Us**, differs materially from the information set out in the proposal form, **We** may offer cover on different terms or decline it altogether.

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#### Contacting Us

If **You** have any queries or need to contact **Us**, please telephone **Us** on +852 3191 6800 or write to **Us** at Chubb Insurance Hong Kong Limited, 39/F, One Taikoo Place, Taikoo Place, 979 King's Road, Quarry Bay, Hong Kong.

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#### Keeping Your documents safe

**You** should keep **Your Policy Wording, Policy Schedule** and any endorsement (if applicable) in a safe place in case **You** need to refer to them in the future.

Certain types of cover under **Your Policy** require **You** to provide receipts and other documentary evidence to **Us**. **You** should keep those documents in a safe place in case **We** need them to settle a claim.

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### Part 5. Definitions

In **Your Policy** some words have a special meaning (whether expressed in the singular or the plural) and **We** define them below. To assist **You** the following words have been printed in Title case wherever they appear in **Your Policy**.

**Accident** means a sudden, unforeseen, fortuitous and unintended event. The word **Accidental** shall be construed accordingly.

**Accidental Death** means death occurring:

- (a) as a result of an **Accidental Injury**; and
- (b) within one hundred and eighty (180) days of the **Accident** causing the injury.

**Accidental Injury** means a **Bodily Injury** resulting from an **Accident** and which is not an illness and which:

- (a) is caused by violent, external and visible means; and
- (b) occurs during the **Period of Insurance**; and
- (c) results within one hundred and eighty (180) days of the **Accident**; and
- (d) results solely and independently of any causes other than:
  - (i) the **Accident**; and/or
  - (ii) sickness directly resulting from medical or surgical treatment rendered necessary by the **Accident**; and
- (e) may include a **Bodily Injury** as a result of **You** being directly and unavoidably exposed to the natural elements as a result of an **Accident**.

**Activities of Daily Living** means the following activities conducted without assistance from another person:

- (a) Feeding – the ability to feed oneself once food had been prepared and made available.
- (b) Dressing – the ability to put on, take off, secure and unfasten all garments and, as appropriated, any braces, artificial limbs or other surgical appliances.
- (c) Mobility – the ability to move indoors from room to room on level surfaces.
- (d) Toileting – the ability to use the lavatory or otherwise manage bowel and bladder functions so as to maintain a satisfactory level of personal hygiene.

- (e) Washing/Bathing – the ability to wash in the bath or shower (including getting into and out of the bath or shower) or wash satisfactorily by other means.
- (f) Transferring – the ability to move from a bed to an upright chair or wheelchair and vice versa.

**Acts of Terrorism** means any actual or threatened use of force or violence directed at or causing damage, injury, harm or disruption, or commission of an act dangerous to human life or property, against any individual, property or government, which the stated or unstated objective of pursuing economic, ethnic, nationalistic, political, racial or religious interests, whether such interests are declared or not. Robberies or other criminal acts, primarily committed for personal gain or acts arising primarily from prior personal relationships between perpetrator(s) and victim(s) shall not be considered **Acts of Terrorism**. **Acts of Terrorism** shall also include any act, which is verified or recognised by the (relevant) government as an act of terrorism.

**Anniversary Date** means the date exactly one (1) year from the **Commencement Date of Your Policy** and the same date on each consecutive year thereafter.

**Benefit** means the respective benefit, as stated in the **Policy Schedule**, payable by **Us** under the terms and conditions of this **Policy** in respect of each loss or **Bodily Injury** event covered by this **Policy**.

**Bodily Injury** means physical injury caused solely and independently by an **Accident** and sustained during the **Period of Insurance**.

**Brittle Items** means glass, crystal, china, porcelain, earthenware, stone, crockery, a vase or ornament, glassware or similar brittle items. Part of a glass house or conservatory, part of a clock, picture, television set, radio or computer monitor or items worn or carried by hand - for example, spectacles, watches, cameras and binoculars are not classified as **Brittle Items**.

**Building** means the following that is within the grounds of **Your Premises**:

- (a) private dwelling house or flat;
- (b) fixed coverings to walls, floors and ceilings;
- (c) fixed swimming pools;
- (d) terraces and patios;
- (e) footpaths, driveways and gardens;
- (f) gates and fences;
- (g) fixtures and fittings of **Your Premises**;
- (h) fixed windows or glass to the external of private dwelling house or flat;
- (i) blinds or awnings on the outside of the buildings;
- (j) gas, water or electricity piping from the main piping to and within the dwelling house or flat.

**Business** means any business, trade, profession, occupation, agistment of stock, grazing, farming, commercial or income earning activity, but it does not mean tenancy of the **Building**.

**Civil Commotion** means a disturbance, commotion or disorder created by civilians usually against a governing body or the policies thereof.

**Commencement Date** means 12:01 a.m. **Hong Kong** time on the date shown in **Your Policy Schedule**.

**Contents** means contents as defined in Section 1 – Contents Cover.

**Credit Card** means personal credit cards issued by Hang Seng Bank Limited and/or its subsidiaries. This does not include any corporate credit cards or commercial credit cards.

**Delivery Company** means the company which is responsible for the final shipment delivery to **You**.

**Eligible Item** means an item:

- (a) That is purchased within an operative **Period of Insurance**; and
- (b) That is purchased solely for personal use; and
- (c) That is new and has not been used when purchased; and
- (d) That is purchased through **Retailer** or **Seller**; and
- (e) The cost of which has been directly charged to **Credit Card**.

**Excess** means the first amount of the loss as stated in the **Policy Schedule** which **You** must pay if **You** have a claim and **We** will only be liable for the amount which is over and above that amount (up to the **Sum Insured** specified in the **Policy Schedule**). It applies to each loss or claim. If the loss is within the excess amount, **We** will have no liability. If there is more than one excess indicated in the **Policy Schedule** in each and every claim made, then the highest excess only shall apply.

**Family Member** means the spouse, **Partner**, child(ren), parent(s) and relative(s) of the **Policyholder** who permanently reside at the **Premises**.

**Flood** means the inundation of normally dry land by water escaping or being released from the normal confines of any natural water course, lake, reservoir, canal or dam.

**Hong Kong** means Hong Kong Special Administrative Region of the People's Republic of China.

**Malicious Damage** or **Vandalism** means a wrongful act motivated by malice, vindictiveness or spite with the intention of damaging the property. This does not include:

- (a) neglect, carelessness, poor housekeeping or unhygienic living habits;
- (b) damage occurring during maintenance operations carried out by **You** or the tenant or anyone acting on your or their behalf;
- (c) damage as a result of repairs, or attempted repairs, carried out by **You** or the tenant or anyone acting on their behalf;
- (d) damage caused by the failure of **You** or the tenant to control their children;
- (e) damage caused by pets belonging to **You** or the tenant;
- (f) **Accidental** damage or **Accidental** loss; or
- (g) scratching, denting, chipping, rubbing or chaffing.

**Mobile Phone** means the portable telephone or smartphone with a telecommunications function.

**Money/Personal Money** means cash, cheque, premium bonds, bankers draft, travellers cheques, postal or money orders, gift tokens or voucher. But not including all virtual currency such as bitcoins, credit amount on any kind of eWallet, Non-Fungible Token or any kind of crypto-currency and any kind of bank cards.

**Open Air** means an area of the **Premises** which is not fully enclosed by walls and a roof or not fully capable of complete closure and includes but is not limited to the following areas:

- (a) a veranda, porch, gazebo or carport; or
- (b) any open area within the land boundaries of the **Premises**.

**Partner** means **Policyholder's** de-facto partner who has been living permanently with the **Policyholder** for three (3) months or more at the time of the loss that may give rise to a claim for **Benefits**.

**Period of Insurance** means one (1) month from the **Commencement Date** or the latest **Renewal Date** whichever is later. If **You** continue to pay the premium then, unless **We** advise prior to the **Renewal Date** that **We** will not be renewing or amend the coverage, a **Policy** with the same terms and conditions automatically comes into existence for one (1) month from the **Renewal Date**. However, if **Your Policy** is cancelled or

otherwise terminated, the **Period of Insurance** will be from the **Commencement Date** or **Renewal Date** whichever is the later up to and including the date of cancellation or termination.

**Permanent Total Disablement** means disablement that results solely, directly or independently of all other causes from **Bodily Injury** and which occurs within one hundred eighty (180) days of the **Accident** in which such **Bodily Injury** was sustained, which prevents **You** from performing at least three (3) of the **Activities of Daily Living** for the remainder of **Your** life, and entirely prevents **You** from engaging in gainful employment of any and every kind for the remainder of **Your** life and from which there is no hope of improvement as certified by the **Physician**.

**Physician** means a legally licensed physician or surgeon duly registered and practising within the scope of his license pursuant to the laws of the country in which such practice is maintained. **Physician** shall not include **You**, **Family Members** or any of **Your** relatives unless otherwise approved by **Us**.

**Personal Documents** means passports, driving licenses, **Hong Kong** identity cards and travel documents issued by the government belonging to **You**.

**Personal Effects** means any of **Your** personal belongings outside the **Premises** which was physically carried or worn by **You** at the time of loss or damage anywhere in the world, but shall exclude cash or any kind of **Money** or any **Sporting** equipment while being used during the course of **Sporting** activity, **Mobile Phones**, any kind of computers or tablets, computer systems and accessories.

**Pets** means domestic dogs or cats normally kept inside **Your Premises** primarily for **Your** company and have been microchipped and/or licensed.

**Policy** means **Our** agreement with **You** which is made up of this **Policy Wording**, **Your** proposal for insurance, the **Policy Schedule** and any endorsements or other documents **We** give **You** in writing.

**Policyholder** means the person or organization named in the **Policy Schedule** who has applied and paid the premium for the **Policy**.

**Policy Schedule** means the document that contains important information relevant to **Your** insurance including the **Period of Insurance**, **Your** premium, details of **Your Premises**, the **Excess(es)** that will apply and whether any standard terms have been varied by way of endorsement.

**Policy Wording** means this document.

**Policy Year** means each continuous twelve (12) months **Period of Insurance** under this **Policy**, the first of which starts on the **Commencement Date** and thereafter on each **Anniversary Date**.

**Premises** means **Your** private dwelling in **Hong Kong** where:

- (a) it is used for domestic purposes only; and
- (b) it is situated at the residential address shown as property to be insured in the **Policy Schedule**; and
- (c) it is built of bricks, stone or concrete and roofed with concrete; and
- (d) the building age of **Premises** is sixty (60) years or below on the **Commencement Date**.

In the event of any dispute on the area of **Premises**, the floor plan attached with the title deeds shall prevail.

**Renewal Date** means one (1) month from the **Commencement Date** and subsequently, the same date of each successive month.

**Replacement Cost** means the cost of replacing, rebuilding or repairing the **Building** and/or **Contents** to a condition substantially the same as their condition when new. If the **Building** is heritage or the architectural features and/or structural materials of the **Building** possess an ornamental, antiquarian or historical character, or the original materials are not available when the **Building** and/or **Contents** are lost or damaged, **Replacement Cost** shall mean the rebuilding or replacement or repairing or restoring to a reasonably equivalent appearance and capacity using original design and suitable equivalent materials.

**Retailer or Seller** means a trade registered company that sells goods directly to consumers in retail stores, online store, virtual store or telephone marketing.

**Riot** means the act of any person taking part together with others in any disturbance of the public peace (whether in connection with a strike or lock-out or not) or the action of any lawfully constituted governmental authority in suppressing or attempting to suppress any such disturbance or in minimising the consequences of such disturbance.

**Sports, Sporting** means any athletic activity requiring skill or physical prowess performed by **You**.

**Storm** means a violent disturbance of the atmosphere, including strong winds which may be accompanied by lightning, rain, sleet and hail.

**Sum Insured** means in relation to each **Benefit** available in this **Policy**, the maximum amount **We** will pay for each **Policy Year** as stated in the **Policy Schedule** or any endorsement(s) corresponding to that **Benefit**.

**Unauthorized Transaction** mean unauthorized transactions which are carried on **Your Credit Card** which are made via the internet, telephone, or TV.

**Uninhabitable** means the condition of the **Premises** being unsafe for inhabiting and will require a period of time which exceeds twenty-four (24) hours, for the reinstatement of the **Premises** to be inhabitable.

**Valuables** means:

- (a) jewellery, watches, fur, fine arts, collectible stamps and coins;
- (b) items of precious metals, gold, silver, platinum, other precious metals, or stone articles;
- (c) antiques, pictures, works of art.

**We/Us/Our** means Chubb Insurance Hong Kong Limited.

**You/Your** means the lawful occupier of the **Premises**, namely:

- (a) the **Policyholder** as a landlord or tenant; and/or
- (b) the permanent occupiers of the **Premises** excluding domestic helper, tenants residing under a tenancy where the landlord is the **Policyholder**; and/or
- (c) **Family Members**.

## Part 6. Description of Coverage

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### Section 1. Contents Cover

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Our liability under Section 1 (inclusive of all Additional Benefits under Section 1.3 and the Additional Extension under Section 3) is up to the relevant maximum **Sum Insured** specified in the **Policy Schedule**, subject to the respective limits that may be applicable as set out in the **Policy Schedule**.

#### 1.1 Definitions of Contents

---

**Contents** means the following items belonging to **You** located at **Your Premises**:

- carpets, internal blinds and curtains;
- clothing and shoes;
- kitchen utensils and appliances;
- tableware;
- bathroom utensils and appliances;

- entertainment appliances (e.g. TV video/audio equipment);
- other appliances (e.g. washing machine, clothes dryer);
- linens and towels;
- swimming pools and spas not permanently fixed;
- furniture and lightings;
- renovations or domestic structural improvements installed by **You** that are not otherwise insured by the management corporation or another insurance policy;
- **Mobile Phones;**
- musical instruments;
- other miscellaneous household/personal items;
- other collectibles and **Valuables;**
- **Brittle Items;**
- potted plants; and
- **Sports** equipment.

**Contents** are not:

- **Pets**, birds, fish and animals;
- motorised land vehicles and their attached accessories including but not limited to motor vehicles, trucks, motorcycles, minibikes and farm vehicles, motorised golf buggies, ride on mowers, electronic bike, motorised scooter and motorised wheelchairs;
- watercraft;
- **Sports** equipment whilst in use;
- jet skis;
- aircraft, drones or aerial device, excluding non-pilotable model aircraft or toy kites;
- any conveyance designed to travel on an air-cushion over surface of land or sea;
- property of roomers, boards or guests whether paying or not paying;
- caravans and trailers;
- trees, shrubs and other plant life, except when growing in pots;
- firearms which are not registered or not stored in accordance with relevant legislation;
- any items related to **Your Business** or employment-related purposes;
- food and drink items;
- contact lenses;
- **Money;**
- electronic data;
- any kind of computers or tablets, computer systems and accessories;
- land or water;
- **Building;**
- any kind of power generators, including but not limited to any kinds of solar panel (e.g. solar electric panel or photo-voltaic panel);

- garden furniture items, any items in **Open Air** or outdoor furniture; and
- any kind of toiletries, skin care and/or cosmetic items.

## 1.2 Contents Benefit

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**We** will cover **You** for any physical loss of or damage to **Your Contents** (except **Mobile Phones**) caused by an **Accident** occurring at **Your Premises** during the **Period of Insurance** unless otherwise excluded by this **Policy**.

**We** will cover **You** for the loss of **Your Mobile Phone** loss caused by theft or burglary occurring at **Your Premises** during the **Period of Insurance**. The theft or burglary must be reported to the police within twenty-four (24) hours of discovery and **You** must obtain an investigation report.

**Our** maximum liability for any single item of **Contents** is up to 10% of **Sum Insured** of Contents, and subject to the respective limits for **Contents, Valuables, Brittle Items** and **Mobile Phones** as set out in the **Policy Schedule**.

**Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

## 1.3 Additional Benefits and Limitations

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Each Additional Benefit under Section 1.3 is subject to the relevant maximum **Sum Insured** and the respective limits that may be applicable as set out in the **Policy Schedule**.

### 1.3.1 Alternative Accommodation Cover

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#### (A) Alternative Accommodation

If **Your Premises** is occupied by **You** and rendered **Uninhabitable** due to physical **Accidental** loss or damage to **Your Contents** or **Building** (provided the optional **Benefit** of Building Cover is operative) covered under Section 1 or Section 5 of this **Policy** during the **Period of Insurance**, **We** will pay **You** for the actual cost incurred for **Your** temporary alternative accommodation. No **Excess** shall be applied to this **Benefit**.

#### (B) Pet's Emergency Boarding

If **Your Premises** become **Uninhabitable** under Section 1.3.1(A), we will also reimburse **You** for the reasonable and actual cost of **Your Pet's** boarding expenses incurred for **Your Pet** at a registered pet boarding facility. No **Excess** shall be applied to this **Benefit**.

### 1.3.2 Loss of Rent

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If **Your Premises** is occupied by **Your** rent-paying tenant and rendered **Uninhabitable** due to physical **Accidental** loss or damage to **Your Contents** or **Building** (provided the optional **Benefit** of **Building Cover** is operative) covered under Section 1 or Section 5 of this **Policy** during the **Period of Insurance**, **We** will pay **You** as the landlord of **Your Premises** either the actual loss of rental or actual and reasonable cost of temporary alternative accommodation arranged for **Your** rent-paying tenant, whichever is lower, subject to

- the actual loss of rental is based on the average rent of **Your Premises** received by **You** as the landlord from the rent-paying tenant under the tenancy agreement over three (3) months immediately preceding the loss or damage covered by this Section 1.3.2;
- the amount of rent **We** will pay is up to a maximum period of three (3) months from the time of **Your Premises** becomes **Uninhabitable**; and
- there is a signed and valid tenancy agreement (with stamp duty) in place at the time of loss or damage and for the period it remains **Uninhabitable**.

#### Exclusions applicable to Section 1.3.2 Loss of Rent:

- Your Premises** has been unoccupied for more than thirty (30) consecutive days before the time of loss, destruction or damage.
- Your Premises** or any part of **Your Premises** is sub-let.

- (c) **Your** legal interest in **Your Premises** or **Contents** ceases at the time of the loss, destruction or damage.
  - (d) **You** have issued notice to terminate the tenancy of **Your Premises** one (1) month before or after the date of **Accident**.
  - (e) The repair or rebuilding to render the **Premises** to become habitable has been delayed by **You**, or anyone acting with **Your** consent or on **Your** behalf.
  - (f) If the claim involves any deliberate or malicious act of the tenants lawfully residing at **Your Premises**.
- Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

### **1.3.3 Contents during Removal**

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**We** will pay **You** for physical **Accidental** loss or damage to **Your Contents** happening in the course of removal by professional remover between **Your Premises** and **Your** new home in **Hong Kong** during the **Period of Insurance**. **Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

It is further noted that if any loss under Section 1.3.3 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only.

### **1.3.4 Personal Effects and Valuables outside Premises**

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**We** will pay **You** for **Accidental** physical loss or damage to **Your Personal Effects** and **Valuables** outside of the **Premises** during the **Period of Insurance**. The **Personal Effects** and **Valuables** must belong to **You** and is worn by **You** at the time of **Accident**. Sufficient proof and/or a police report or its equivalent must be provided. **Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

It is further noted that if any loss under Section 1.3.4 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only.

### **1.3.5 Personal Money Loss by Theft or Burglary at Premises**

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**We** will pay **You** for **Your Personal Money** loss caused by theft or burglary occurring at **Your Premises** during the **Period of Insurance**, and which are reported to the police within twenty-four (24) hours of discovery and obtained an investigation report. No **Excess** shall be applied to this **Benefit**.

It is further noted that if any loss under Section 1.3.5 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only.

### **1.3.6 Replacement of Windows, Door Locks and Key**

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**We** will pay **You** for the actual and reasonable **Replacement Cost** of windows, door locks and key broken, with similar but no better quality of existing, as a result of burglary, theft or unauthorized entry to **Your Premises** during the **Period of Insurance**. No **Excess** shall be applied to this **Benefit**.

### **1.3.7 Loss of Personal Documents due to Theft or Burglary at Premises**

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**We** will pay **You** for the actual and reasonable **Replacement Cost** of **Personal Documents** belonging to **You** as a result of burglary or theft occurring at **Your Premises** during the **Period of Insurance** where such **Personal Documents** were lost or damaged and which are reported to the police within twenty-four (24) hours of discovery and obtained an investigation report. No **Excess** shall be applied to this **Benefit**.

It is further noted that if any loss under Section 1.3.7 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only.

### **1.3.8 Unauthorized Use of Credit Cards due to Theft or Burglary at Premises**

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**We** will pay **You** for the actual loss due to unauthorized use of **Credit Cards** belonging to **You** (except the unauthorized access by the **Family Members**) as a result of burglary or theft occurring at **Your Premises** during the **Period of Insurance** where such **Credit Cards** were lost and which are reported to the police and the **Credit Cards** issuing authority within twenty-four (24) hours of discovery and obtained an investigation report, subject to the cardholders' compliance of all the terms and conditions under which the

**Credit Cards** are issued and that the loss cannot be recoverable from any other source. No **Excess** shall be applied to this **Benefit**.

It is further noted that if any loss under Section 1.3.8 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only.

### **1.3.9 Frozen Food**

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**We** will pay **You** for loss or damage to frozen food at **Your Premises** caused by deterioration due to **Accidental** failure of electricity supply during the **Period of Insurance**, provided that such failure is not caused by the deliberate act of the supply authority or its employee. No **Excess** shall be applied to this **Benefit**.

### **1.3.10 Credit Card Fraudulent Usage Protection**

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**We** will pay **You** for the financial loss from an **Unauthorized Transaction** made using **Your Credit Card** information without **Your** consent, during the **Period of Insurance** where **Your Credit Card** is still in **Your** physical possession. **We** will reimburse **You** for the **Unauthorized Transaction**, for which **You** are responsible in the two (2) months prior to **You** first reporting the incident to the issuers.

**Our** liability is subject to:

- (a) **You** must comply with the issuer's **Credit Card** terms and conditions in respect of reporting any unauthorized use;
- (b) **You** must have used the **Credit Card** in accordance with the issuer's **Credit Card** terms and conditions;
- (c) **Your** account must be valid and in good standing for coverage to apply; **Benefits** will not be paid if, on the date of occurrence, on the date of claim filing, or on the date of would-be claim payment, **Your** account is in delinquency, collection, or cancellation status;
- (d) **You** must report to both the police and the **Credit Card** issuer within twenty-four (24) hours upon discovery and obtained an investigation report.
- (e) **You** should in the first instance contact the **Credit Card** issuer and query any transactions on **Your Credit Card** that **You** have not authorised or approved. If after the investigation by the **Credit Card** issuer, it is confirmed that **Unauthorized Transactions** have appeared, **You** must report any claims to **Us** as soon as **You** can and within fourteen (14) days of the incident occurring. **You** will be asked to provide evidence of the **Unauthorized Transactions** from **Your Credit Card** issuers like bank statements, reward card statements or other such financial statements, and asked to disclose to **Us** the correct incident reason arising to the claim.

In some instances **Your Credit Card** issuer may reimburse **You** for these **Unauthorized Transactions**, but if **Your Credit Card** issuer has refused to accept liability in writing and **You** have complied with the terms and conditions of **Your Credit Card** issuer, then **We** will reimburse **You** for these transactions.

#### **Exclusions applied to Section 1.3.10 Credit Card Fraudulent Usage Protection:**

- (a) Any ATM Card and Debit Card;
- (b) Any cash advances transaction made with **Your Credit Card**;
- (c) Any transactions made using the "Verified by VISA" or "Master Card Secure Code" services or any similar card security service;
- (d) Any transaction where the personal identification number, PIN and/or password is used;
- (e) Any credit card not issued in **Hong Kong** or any credit card not issued by Hang Seng Bank Limited and/or its subsidiaries or any corporate cards;
- (f) Any loss that can be recoverable from any other source;
- (g) Any charges incurred by a relative or a member of **Your Family Members**, or by a person **You** have authorised to use **Your** payment card or e-Money account;
- (h) Losses that do not occur during the **Period of Insurance**;

- (i) Any losses and/or unauthorized charges due to any kind of system, malware and/or data hacks and/or any losses incurred as a result of the theft or misuse of any data or databases under the control of financial institutions, merchants, retailers or payment system providers;
- (j) Any losses and/or unauthorized charges following skimming or cloning of **Credit Card**:
  - i. When the **Credit Card** has been delivered to a person other than the one to which it was destined for;
  - ii. When **You** have failed to comply with the contractual obligations with the **Credit Card** issuer;
  - iii. When the **Credit Card** issuer has failed to comply with the contractual obligations with the relevant governing bodies;
  - iv. For civil liability of any kind;
  - v. When fraudulent acts committed like theft or misuse of any data or databases under the control of the **Credit Card** issuer or by its employees or dependents; or
  - vi. When there has been a failure in the software or hardware under the control of the **Credit Card** issuer.

It is further noted that if any loss under Section 1.3.10 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only. No **Excess** shall be applied to this **Benefit**.

### **1.3.11 Loss of Personal Documents outside Premises**

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**We** will pay **You** for the actual and reasonable **Replacement Cost** of **Personal Documents** belonging to **You** as a result of **Accidental** loss or damage to **Your Personal Documents** outside of the **Premises** during the **Period of Insurance**, and which are reported to the police within twenty-four (24) hours of discovery and obtained an investigation report. No **Excess** shall be applied to this **Benefit**.

It is further noted that if any loss under Section 1.3.11 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only.

### **1.3.12 Contents Stored outside Premises**

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**We** will pay **You** for the **Accidental** physical loss or damage to **Your Contents** while stored at **Your** workplace or any storage facility (including mini storage) during the **Period of Insurance**, which is owned or rented by **You** within **Hong Kong** arising out of:

- (a) fire, lightning, explosion, earthquake, **Riot and Civil Commotion**;
- (b) **Storm, Flood**, malicious acts or vandalism, escape of water or oil or collision where the household contents are situated in the building at the time of loss or damage;
- (c) theft or burglary from any building provided that force is shown to be used to enter the building;

**Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

### **1.3.13 New Home Protection**

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If **You** are permanently moving to a new home in **Hong Kong** as **Your** new principal place of residence during the **Period of Insurance**, **We** will cover **Your Contents**:

- (a) while they are contained in **Your Premises** for up to sixty (60) days or up to the **Policy** expiry date (whichever is earlier), from the date **You** begin to move **Your Contents** to the new home; or
- (b) at the **Your** new home.

It is further noted that if any loss under Section 1.3.13 is also covered under other **Benefits**, except **Your Contents** in **Your Premises** covered under Section 1.2, **You** can make a claim under one **Benefit** only.

You must notify **Us** within sixty (60) days of **Your** moving to the new home with details of the new home. **Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

#### **Exclusions applicable to Section 1.3.13 New Home Protection:**

Any move to the new home is not reported to **Us** within sixty (60) days.

### 1.3.14 Contents in Transit to and from Storage Facility

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**We** will pay **You** for **Accidental** physical loss or damage to **Your Contents** whilst in transit from **Your Premises** to a registered and approved household content's storage facility or from the furniture storage facility to **Your** new place of residence during the **Period of Insurance** caused by:

- (a) fire, collision and/or overturning of the conveying vehicle;
- (b) theft from the conveying vehicle;
- (c) vandalism, **Riot** or **Civil Commotion**;

Provided **Your Contents** have been professionally packed and moved by a professional packer or mover. No **Excess** shall be applied to this **Benefit**.

#### **Exclusions applicable to Section 1.3.14 Contents in Transit to and from Storage Facility:**

- (a) damage to **Brittle Items**;
- (b) damage caused by scratching, denting, bruising or chipping;
- (c) loss or damage covered by another insurance policy;
- (d) any transit not packed by professional packer or mover;
- (e) any transit not arranged and handled by a professional packer or mover.

It is further noted that if any loss under Section 1.3.14 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only.

### 1.3.15 Removal of Debris

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Upon **Our** prior written consent, **We** will pay the reasonable costs and expenses necessarily incurred by **You** in removing debris, dismantling and/or demolishing, shoring or propping any portion or portions of the **Your Contents** (including debris required to be removed from adjoining or adjacent public or private land) during the **Period of Insurance**. No **Excess** shall be applied to this benefit.

### 1.3.16 Pets Accident Guard

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#### **(A) Pets – Accidental Death or Theft**

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During the **Period of Insurance**, **We** will pay **You** if **Your Pet**:

- (a) suffers **Accidental Bodily Injury** in **Hong Kong** resulting in death;
- (b) is stolen by actual forcible, violent breaking into or out of **Your Premises**; or
- (c) is euthanized as a result of **Accidental Bodily Injury** occurring in **Hong Kong**, provided there is a veterinary report.

No **Excess** shall be applied to this benefit.

#### **(B) Pets – Funeral Service**

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If **You** are covered under Section 1.3.16(A), **We** will pay **You** for the actual and reasonable cost of cremation, funeral service and/or handling charges from the vet or funeral service providers in respect of the handling of the remains of the **Pet**.

#### **Exclusions applicable to Section 1.3.16 Pets Accident Guard:**

- (a) **Your Pet** is destroyed without **Our** consent unless immediate destruction on humane grounds is considered necessary by a registered veterinary surgeon in **Hong Kong**.
- (b) The death of **Your Pet** is the result of surgery not necessitated by **Accidental Bodily Injury** nor considered necessary by a registered veterinary surgeon in **Hong Kong** to save its life.
- (c) The death of **Your Pet** is due to breeding, sickness or disease.

- (d) **Your Pet** has not been microchipped and/or licensed.
- (e) Loss otherwise covered by another insurance policy.
- (f) You are unable to provide documentary proof of ownership of **Your Pet**.

### **1.3.17 New Purchase Contents in Transit**

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**We** will pay **You** for the **Accidental** physical loss or damage to **Your Contents** newly purchased by **You** whilst in transit from a dealer in **Hong Kong** to **Your Premises** during the **Period of Insurance**. **Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

#### **Exclusions applicable to Section 1.3.17 New Purchase Contents in Transit:**

- (a) Physical loss or damage to goods of a perishable nature.
- (b) Damage to **Brittle Items**.
- (c) Goods which are in transit other than under waybill or bill of lading, parcel, post receipt courier or other evidence of sending, or any transit has not carried by professional.
- (d) **Valuables**.
- (e) Any item which **You** can seek and recover compensation from whether the seller, the transporter or any other third party.
- (f) Damage caused by scratching, denting, bruising or chipping.

### **1.3.18 Purchase Protection & Buyer's Protection**

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#### **(A) Purchase Protection**

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**We** will pay **You** for the **Replacement Cost** of the **Eligible Item** in the event of **Accidental** loss or damage due to burglary or robbery during the **Period of Insurance**, which are reported to the police within twenty-four (24) hours and obtained an investigation report, occurring within sixty (60) days from the purchase date. **Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

#### **Terms and Conditions applicable to (A) Purchase Protection:**

- (a) A minimum value of HKD 500 is required for the **Eligible Item**.
- (b) **You** must report to the police or relevant authority within twenty-four (24) hours of the incident occurring and retain documentary evidence, such as a police investigation report for support of a claim.
- (c) An **Eligible Item** must have been paid in full or paid on a monthly contract/subscription plan, and the cost of which has been directly charged to **Credit Card**.
- (d) **Eligible Item** left unattended in a public place and which are not subsequently recovered shall not constitute as being burglary or robbery.

#### **Claim Provisions applied to (A) Purchase Protection:**

In the event of a **Claim**, **You** must provide **Us** with copies of invoices and/or receipts relating to the **Eligible Item** verifying the items were charged to **Your Credit Card**, **You** may be asked to send **Us** the **Eligible Item** or provide **Us** the receipt as proof of mailing/shipping.

#### **(B) Buyer's Protection**

---

During the **Period of Insurance**, **We** will reimburse **You** for the loss of the **Eligible Item** in the event that the **Eligible Item**:

- (a) does not arrive within thirty (30) days from the scheduled arrival date provided by the **Delivery Company** or the **Retailer** or **Seller** has confirmed and proven that the **Eligible Item** could not be found; or
- (b) does not match the description of the **Eligible Item** made by the **Retailer** or **Seller** at time of purchase.

**Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

**Terms and Conditions applicable to (B) Buyer's Protection:**

- (a) A minimum value of HKD 500 is required for the **Eligible Item**.
- (b) An **Eligible Item** must have been paid in full or paid on a monthly contract/subscription plan, and the cost of which has been directly charged to **Credit Card**.
- (c) Proof of updated delivery information, proof of postage and tracking information from the **Delivery Company** or **Retailer** or **Seller**.

**Claim Provisions applied to (B) Buyer's Protection:**

- (a) In the event the **Eligible Item** does not arrive:
  - 1. If **You** are dissatisfied with the response by the **Retailer** or **Seller** and have not been offered a refund by the **Retailer** or **Seller**, then **You** have to report the claim to **Us** within thirty (30) days from this point; all the evidence will be reviewed and determine if the claim is valid. **You** may be asked to provide the following evidence but not limited to:
    - i. Information of the **Retailer** or **Seller**;
    - ii. Proof of **Your** initial investigation by contacting the **Retailer** or **Seller**.
  - 2. If **You** are unable to contact the **Retailer** or **Seller**, **You** must report to the police or the relevant local authority, in order to reserve **Your** right to a refund against the **Retailer** or **Seller**.
  - 3. If **We** deem the claim to be successful, **We** will reimburse the original purchase price of the **Eligible Item** to **You** up to the maximum **Benefit** amount under this Section as shown in the **Policy Schedule**, whichever is the lesser.
- (b) In the event the **Eligible Item** does not match **Retailer** or **Seller's** description:
  - 1. **You** need to contact the **Retailer** or **Seller** to address the issue if the **Eligible Item** does not match the description of the **Eligible Item** by the **Retailer** or **Seller**.
  - 2. If the **Retailer** or **Seller** offer **You** a solution, such as accepting a return at the **Retailer's** or **Seller's** expense or offering a replacement, and **You** are dissatisfied with the response by **Retailer** or **Seller** who does not offer a refund, then **You** have to report the claim to **Us** within thirty (30) days from this point; all the evidence will be reviewed and determine if the claim is valid. **You** may be asked to provide the following evidence but not limited to:
    - i. Description of the **Eligible Item**;
    - ii. Information of the **Retailer** or **Seller**;
    - iii. Proof of **Your** initial investigation by contacting the **Retailer** or **Seller**.
    - iv. Proof of the discrepancy to the description of the **Eligible Item** by the **Retailer** or **Seller**.
  - 3. If **We** deem the claim to be successful, **We** will reimburse the original purchase price of the **Eligible Item** to **You** up to the maximum **Benefit** amount under this Section as shown in the **Policy Schedule**, whichever is the lesser.

**Exclusions applicable to Section 1.3.18 Purchase Protection & Buyer's Protection:**

**We** will not pay any benefit for:

- 1. Any claim for **Malicious Damage**.
- 2. Any loss of **Eligible Item** which is not reported to the police within twenty-four (24) hours or failed to provide a police investigation report. (Applicable to (A) Purchase Protection only)
- 3. Any loss of **Eligible Item** which is left unattended in a public place.
- 4. Any wear and tear to the **Eligible Item**.
- 5. Any damage to **Eligible Item** caused by product defects or product recalls that are covered by manufacturer's warranty.
- 6. Any loss or damage to **Eligible Item** in a vehicle where the items are on view regardless if the vehicle is locked or unlocked.

7. Any **Eligible Item** that **Retailer** or **Seller** has accurately described.
8. Any **Eligible Item** sent to another address other than the address stated on the delivery note.
9. Any **Eligible Item** such as:
  - i. Counterfeit or pirated goods.
  - ii. Stocks, shares, bonds, currencies or digital assets.
  - iii. Goods bought using store credit or finance/leasing options, or which were not paid in full.
  - iv. Confiscated or illegally declared by any government, customs or public body.
  - v. Jewellery watches, precious metals/gemstones, art, antiques or collectable items.
  - vi. Motor vehicles, motor cycles or motor scooters, watercraft, aircraft and any equipment and/or parts necessary for its operation and/or maintenance.
  - vii. Second hand/used goods.
  - viii. Cash or its equivalents, traveller's cheques, tickets or negotiable instrument.
  - ix. Real estate.
  - x. Product or service subscription based where **You** are paying a monthly fee for the services.
  - xi. Firearms, animals, living plants or perishable goods.
  - xii. **Sports** equipment whilst in use.
  - xiii. Aircraft, drones or aerial device, excluding non-pilotable model aircraft or toy kites.
  - xiv. Electronic data.
  - xv. Food items.
10. Confiscation or destruction by any government, customs or public body.
11. Any **Eligible Item** purchased from a natural person through a private transaction.
12. Any damage due to any modifications that have been made after purchase.
13. Failure to provide proof of loss or damage.
14. Any loss claimed under both (A) Purchase Protection and (B) Buyer's Protection.
15. Any tax, insurance cost or surcharge.
16. Any loss that can be compensated from other sources.
17. Any **Eligible Item** which is not under **Your** name.
18. Any future earned value or income of the **Eligible item**.
19. Any defect or discrepancy of the **Eligible Item** which had mentioned at the time of purchase.

It is further noted that if any loss under Section 1.3.18 is also covered under other **Benefits**, **You** can make a claim under one **Benefit** only. **Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

#### **1.4 Exclusions Applicable to Section 1**

In addition to the General Exclusions applying to all Sections of the **Policy** set out at Section 7 of this **Policy Wording**, **We** will not pay **You** for any loss or damage caused by or attributable to or arising from:

- (a) lack of maintenance, structural defect of the **Building** and/or **Your Premises**;
- (b) seepage of water except damage by rain through openings made in the fabric of the **Building** and/or **Your Premises** by the direct force of typhoon, rainstorm or windstorm;
- (c) the normal handling or usage of **Contents** and **Personal Effects**;

- (d) wear and tear, depreciation, moths, vermin, insects, damp, rust, rot, corrosion, the action of light, atmospheric or climatic condition, any process of dyeing, cleaning, repairing or restoring;
- (e) electrical or mechanical breakdown or derangement;
- (f) misuse or use contrary to manufacturers' instructions, inherent defect or faulty design in workmanship, materials, plan or specification;
- (g) domestic animals belonging to **You**;
- (h) denting, chipping or scratching;
- (i) any deliberate or malicious act of **You** or **Your** domestic helper residing lawfully at **Your Premises**;
- (j) theft at **Your Premises** if any part thereof is let or sub-let;
- (k) theft from any unattended and unlocked vehicle or any open or convertible car with sun roof open;
- (l) unauthorized use of **Credit Cards** by **Your Family Members**.

**We** will not pay **You** for the loss or damage to:

- (a) any part of the structure of the **Building** including wiring, switchboard, pipes and drainage;
- (b) motor vehicles, watercraft, aircraft and mechanically and electrically propelled vehicles or cycles;
- (c) **Sporting** equipment whilst in use, spectacles and contact lenses, **Mobile Phone**, laptop computer, pagers, portable device and tablet;
- (d) computer records, securities certificates and valuable documents;
- (e) records, tapes, compact laser disc and player while away from **Your Premises**;
- (f) plant, living creatures;
- (g) properties in the **Open Air** including aerial fitting, outdoor furniture and similar outdoor installation;
- (h) property used or held for **Business**, occupation or professional purposes;
- (i) **Contents**:
  - i. when **Your Premises** is left unoccupied for more than thirty (30) consecutive days without written consent from **Us** unless the loss or damage to the **Contents** is caused by fire, lightning, explosion, earthquake, typhoon, windstorm or **Flood**; or
  - ii. when **Your Premises** is left unoccupied for more than sixty (60) consecutive days without written consent from **Us** unless the loss or damage to the **Contents** is caused by fire, lightning, explosion, earthquake, typhoon, windstorm or **Flood** and **You** are covered under **Our** Travelsure Protection Plan – Annual Global/China Cover; or
  - iii. when **Your Premises** is left unoccupied for more than one hundred and eighty (180) consecutive days without written consent from **Us** unless the loss or damage to the **Contents** is caused by fire, lightning, explosion, earthquake, typhoon, windstorm or **Flood** and **You** are covered under **Our** Travelsure Protection Plan – Single Trip Cover;
- (j) properties more specifically Insured under another insurance policy;
- (k) the fittings and fixtures, interior decoration and improvements made to **Your Premises** by developer and/or previous landlord;
- (l) **Contents** as a result of mysterious disappearance or misplacement;
- (m) Loss of **Contents** due to theft, burglary or robbery which are not reported to the police within twenty-four (24) hours and obtained an investigation report;
- (n) loss arising from theft or robbery occurring without the use or threat of force or violence, but not including the act constituting the theft is witnessed by **You** and **You** can determine the exact time and place of the theft and obtained an investigation reported from police;
- (o) loss arising from burglary to **Your Premises** is not accompanied by evidence of forced entry or exit;
- (p) Liquid damage to any kind of computers, tablets or camera.

**We** will not pay for the first amount as specified in the **Policy Schedule** if stated, or in the Sum Insured Table that corresponds to the Plan as stipulated in the **Policy Schedule** as **Excess** applicable to relevant **Policy** sections in respect of each and every claim made under this Section as defined in the **Policy Schedule**.

## **Section 2. Personal Liability Cover**

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Our liability under Section 2 is up to the relevant maximum **Sum Insured** specified in the **Policy Schedule**, subject to the respective limits that may be applicable as set out in the **Policy Schedule**.

### **2.1 Definitions Applicable to Section 2**

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**Accidental Property Damage** means:

- (a) physical damage to, destruction of or loss of tangible property including the loss of use thereof at any time resulting therefrom due to an **Accident**; or
- (b) loss of use of tangible property which has not been physically injured or destroyed, provided such loss of use is caused by physical damage of other tangible property due to an **Accident**.

**Compensation** means monies paid or payable by **You** for **Bodily Injury** and/or **Accidental Property Damage** to others pursuant to:

- (a) court judgment inclusive of interest; or
- (b) settlement with **Our** consent,

including any **Defence Costs**.

**Compensation** does not include:

- (a) aggravated, punitive or exemplary damages; or
- (b) fines or penalties imposed by law (including civil penalties); or
- (c) any matters which are deemed uninsurable under the law.

**Defence Costs** means legal costs and disbursements and related expenses incurred in:

- (a) defending any proceedings; and/or
- (b) conducting any claim for contribution or recovery; and/or
- (c) investigating, avoiding or reducing or settling a claim,

incurred by:

- (i) **You** with the written consent of **Us**; and/or
- (ii) **Us** after **We** have assumed conduct of any proceedings.

**Defence Costs** does not include any of **Your** internal or overhead expenses or the cost of **Your** time.

**Employment Practices** means any wrongful or unfair dismissal, denial of natural justice, defamation, misleading representation or advertising, sexual harassment or discrimination in respect of employment or prospective employment of any person by **You**.

**Occurrence** means an event including continuous or repeated exposure to substantially the same general conditions which results in **Accidental Injury** or **Accidental** property damage neither expected nor intended from **Your** standpoint. All events of a series consequent on or attributable to one source or original cause are deemed one **Occurrence**.

## 2.2 Benefit

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### (A) Personal Liability

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We will indemnify **You** against all sums up to the **Sum Insured** in respect of any one (1) event limit stated in the **Policy Schedule**. This **Benefit** applies when **You** become legally liable to pay **Compensation** to a third party for incidents occurring anywhere in the world during the **Period of Insurance**, specifically for:

- (a) **Accidental Death** or **Accidental Injury**; and/or
- (b) **Accidental Property Damage**.

### (B) Pet Liability

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We will indemnify **You** against all sums up to the **Sum Insured** in respect of any one (1) event and annual aggregate limit of **Sum Insured** stated in the **Policy Schedule** which is caused by **Your Pet** occurring anywhere in the world during the **Period of Insurance** and **You** become legally liable to pay to a third party as **Compensation** in respect of:

- (a) **Accidental Death** or **Accidental Injury**; and/or
- (b) **Accidental Property Damage**.

## 2.3 Exclusions Applicable to Section 2

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In addition to the General Exclusions applying to all Sections of the **Policy** as set out at Section 7 of this **Policy Wording**, We will not cover any legal liability directly or indirectly arising out of or in any way connected with the following:

- (a) Assault or battery: assault and/or battery committed by **You** or at **Your** direction. This exclusion will not apply when such assault and/or battery is committed for the purpose of preventing personal injury or eliminating danger of personal injury.
- (b) **Building** alterations: the construction, erection, alteration, addition, renovation or demolition of any **Building** by **You** or on **Your** behalf. Any repair or maintenance cost arising from wear and tear or making good of **Your Premises** irrespective of whether **You** are legally liable for such costs under the terms of any tenancy agreement.
- (c) **Business** or profession: the conduct of any **Business** or profession or the provision of any services by **You** other than as owner of the property including any liability arising out of or in any way connected with the **Premises**, notwithstanding that **We** will indemnify up to the **Sum Insured** any loss as a result of the **Accidental Property Damage**.
- (d) Contractual liability: any obligation assumed under a contract except where that liability would otherwise exist at law in the absence of the contract.
- (e) Earth movement: soil or earth movement including erosion, subsidence, landslide or mudslide.
- (f) Employers' liability:
  - (i) in respect of which **You** are or would be entitled to indemnity under any fund, scheme, policy of insurance or self-insurance pursuant to or required by any legislation relating to workers' compensation whether or not such insurance has been effected; or
  - (ii) imposed by the provisions of any industrial award or agreement or determination where such liability would not have been imposed in the absence of such industrial award or agreement or determination; or
  - (iii) relating to **Employment Practices**.
- (g) Fines and penalties: fines, penalties, punitive, exemplary, liquidated or aggravated damages.
- (h) Goods: any good manufactured, installed, treated, assembled, processed, sold or supplied by **You** or by anyone on **Your** behalf.
- (i) Libel or slander: any act of libel, slander/or defamation.

- (j) Marine structures: the ownership, operation or maintenance of any marine structure including any wharf, jetty or pontoon.
- (k) Personal injury to **You** or at the time of sustaining such injury engaged in the service of **You**.
- (l) Professional liability: the rendering of or failure to render professional advice or service by **You** or by anyone on **Your** behalf.
- (m) Property owned or under **Your** control: any loss of or damage to property:
  - (i) owned by **You**; or
  - (ii) under **Your** legal control; or
  - (iii) under the control of persons in **Your** service.
- (n) Vehicles, trailers, watercraft and aircraft: the ownership, operation, or loading and unloading from or maintenance of any:
  - (i) vehicle;
  - (ii) caravan or trailer;
  - (iii) aircraft or hovercraft; or
  - (iv) watercraft.
- (o) **Sporting** activities: **Your** engagement in any **Sporting** activities.
- (p) Any liability arising from domestic animals but not including **Your Pets**.
- (q) Other ownership: ownership or occupation of any land or **Building** other than **Your Premises** specified in the **Policy Schedule**.
- (r) You having resided outside of **Hong Kong** for more than thirty (30) consecutive days at the time of **Accident**. But it will be extended if **You** are also insured under our issued Travelsure Protection Plan policy based on whichever period is longer.

## 2.4 Limit of Liability

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**Our** liability to indemnify **You** in respect of **Compensation** (including **Defence Costs**) arising from all **Occurrences** during the **Period of Insurance** shall also not exceed the amount stated in the **Policy Schedule**.

## 2.5 Conduct of Defence of Claim

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**We** have the right to negotiate, defend or settle in **Your** name and on **Your** behalf any claim brought against **You** and will have full discretion in the conduct of any proceedings or in the settlement of any claim. For the avoidance of doubt, **Our** liability to indemnify **You** up to the **Sum Insured** includes **Defence Costs** incurred in defending any claim brought against **You**.

## Section 3. Additional Extension

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Our liability under Section 3 is up to the relevant maximum **Sum Insured** specified for Section 1 in the **Policy Schedule**, subject to the respective limits that may be applicable as set out in the **Policy Schedule**.

### 3.1 Renovation, Decorations, Repair and Alteration Works Extension

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We will cover the **Accidental** loss of or **Accidental** damage to **Contents** caused by a registered contractor whilst carrying out interior renovation, decorations, repairs or alterations at **Your Premises** during the **Period of Insurance**, provided that:

- (a) the total contract value for the entire renovation at the **Premises** does not exceed HKD500,000;
- (b) the total contract period involved is within ninety (90) consecutive days; and
- (c) **Your** loss cannot be recovered from the contractor and is not covered by any other insurance.

The maximum amount **We** will pay **You** shall not exceed the **Sum Insured** of Section 1 Contents Cover and the item limit specified in the **Policy Schedule**.

**Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

### **3.2 Home and Away Cover Extension**

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During the **Period of Insurance**, the maximum limits of **Personal Effects** and **Valuables** in 1.3.4 Personal Effects and Valuables outside Premises is automatically increased to the amount under this Section as stated in the **Policy Schedule**, when **You** travel abroad and is covered under the effective period of insurance under Travelsure Protection Plan issued by **Us**. This extended cover is not to be called upon in contribution and is only to pay the remaining claims of **Personal Effects** and **Valuables** out of claims incurred and settled under the Travelsure Protection Plan and so far as incurred but not recoverable under the effective cover period of the Travelsure Protection Plan.

**Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

## **Section 4. Personal Accident**

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Our liability under Section 4 is up to the relevant maximum **Sum Insured** specified in the **Policy Schedule**, subject to the respective limits that may be applicable as set out in the **Policy Schedule**.

If, as a direct result of **Accidental** explosion, **Accidental** fire, theft, robbery or burglary happening at **Your Premises** during the **Period of Insurance**, **You** suffer **Permanent Total Disablement** or **Accidental Death** within 180 days, **We** will pay **You** or **Your** legal personal representatives up to the maximum **Sum Insured** specified in the **Policy Schedule**. Where the event comprises more than one (1) person, each person is entitled only to a proportionate share of the maximum limit applicable to this Section.

### **4.1 Home Refurbishment**

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**We** will reimburse **You** for the home refurbishment up to the limit specified in **Your Policy Schedule**, if **You** suffer an **Accidental Injury** due to an **Accident** occurred anywhere in the world during the **Period of Insurance** that leads to permanent disablement, and a **Physician** certifies this condition and recommends the modification to **Your** premises to be a barrier-free facility to facilitate **You** to live independently.

## **Section 5. Optional Benefit: Building Cover**

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This cover only applies when **Building Cover** is specified as applicable in the **Policy Schedule**.

**We** will cover the **Policyholder** who is the owner of the **Premises** and any bank or finance company who has a pecuniary interest in the insured **Building**, provided that their interest is notified to **Us** and supported by documents verifying their interest; for any physical loss of or damage to **Your Building** at **Your Premises** up to the **Sum Insured** specified in the **Policy Schedule** caused by an **Accident** occurring during the **Period of Insurance** subject to the terms of this **Policy**.

**Excess** as stated in the **Policy Schedule** is applicable for each and every claim made.

In addition to the General Exclusions applying to all Sections of the **Policy** set out at Part 7 of this **Policy Wording**, **We** will not pay **You** for any loss or damage to **Building** caused by or attributable to or arising from:

- (a) caused by faulty design, construction, workmanship or use of defective materials and equipment.
- (b) during the process of alteration or renovation.
- (c) as a result of not conducting routine maintenance
- (d) as a result of **Malicious Damage** caused by tenants or any person lawfully in the **Building**.
- (e) when the **Premises** is left unoccupied for more than ninety (90) consecutive days.
- (f) seepage of water except damage by rain through openings made in the fabric of the **Building** by the direct force of typhoon, rainstorm or windstorm.

## Part 7. General Exclusions

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These General Exclusions apply to the whole of **Your Policy** unless otherwise stated. **Your Policy** does not cover:

1. Loss or damage which is caused by, arising from or in any way connected with:
  - (a) wear and tear, rust, corrosion, gradual deterioration and depreciation;
  - (b) mechanical, electrical or electronic breakdown including when caused by any power supply irregularity including power surge except when caused by the actual burning out of an electric motor or any other defined event;
  - (c) mildew and atmospheric or climatic conditions other than by rain sleet and hail;
  - (d) domestic animals;
  - (e) vermin, insects or by the pecking, clawing, chewing, eating or nesting by birds and other wildlife;
  - (f) any process of cleaning, repairing, restoring or retouching of any item;
  - (g) any process involving the application of heat or the use of chemicals;
  - (h) tenants, roomers, boarders or paying guests and their visitors arising from or due to larceny, theft, **Malicious Damage, Vandalism** or deliberate or intentional acts;
  - (i) settlement, shrinkage, vibration or expansion in **Buildings**, foundations, walls or pavements;
  - (j) faulty workmanship, inherent defect, errors or omissions in design, structural defects and faulty design;
  - (k) water seeping or otherwise percolating through a wall, floor or roof due to wear and tear;
  - (l) the roots of trees, shrubs, plants and grass;
  - (m) erosion;
  - (n) mold, mildew, fungi, fungus, mycotoxins, wet or dry rot or bacteria;
  - (o) disease, illness, malady, ailment, influenza, coronavirus infections, pandemic and/or flu;
  - (p) any unlawful construction, renovation, alteration of any kind;
  - (q) any violation or attempted violation of the law;
  - (r) liquid damage of any kind of computers or tablets and camera;
  - (s) any cosmetic damage or scratching which does not affect its functionality or use; or
  - (t) any electronic charger which power expressed over 1,000 (one thousand) wattage.
2. Consequential loss of any kind.
3. Loss or damage or liability arising from the consequences of war, undeclared war, rebellion, civil war, insurrection, revolution, invasion, war like acts of military forces or personnel, or the destruction or seizure of property for military purposes.
4. Loss or damage or liability caused by the confiscation, destruction or seizure of property by any government or public authority or other authority except when in connection with any **Riot or Civil Commotion**, or any kinds of rescue.
5. Loss or damage or liability caused by or arising from nuclear or radioactive contamination.
6. Loss or damage or liability caused by or in connection with contamination and pollution and the removal of any resultant pollutants and contaminants.
7. Loss or damage or liability arising out of the failure or inability of any item, equipment, computer or computer software including but not limited to firmware, data and embedded chips to recognise correctly, to interpret correctly or to process correctly any data or to function correctly beyond any time when that item, equipment or computer software has not recognised, interpreted or processed correctly any data.

8. Any loss or damage to **Your Building** when **Your Building** is undergoing any process of construction, demolition, alteration or repair.
9. Loss or damage or liability resulting from or in connection with any error in computer programming or instructions to the computer.
10. Loss, damage or liability resulting from or in connection with any kind of drones.
11. Loss or damage or liability when intentionally caused by **You** or a person acting with **Your** consent, including losses resulting from the taking or other misappropriation of the **Contents** or **Valuables**.
12. Loss or damage to **Your Content** when sent by courier or by post.
13. Loss or damage caused by or in connection with earth movement caused by landslip, landslide or subsidence, unless such loss or damage occurs within twenty-four (24) hours of and as a direct result of one or more of the following listed events:
  - (a) **Storm**, rainwater or wind;
  - (b) earthquake;
  - (c) explosion; or
  - (d) water escaping from fixed pipes or apparatus.
14. Asbestos or asbestos products or any materials containing asbestos in whatever form or quantity.
15. Loss or damage or liability caused by or in connection with **Your** failure to use all reasonable means to protect and maintain the insured property before, at, or after the time of any loss or damage.
16. Loss, damage, cost or expense of any nature directly or indirectly caused by, resulting from, or in connection with:
  - (a) any **Acts of Terrorism**; or
  - (b) any action taken in controlling, preventing, suppressing, retaliating against or in any way responding to or relating to any **Acts of Terrorism** regardless of any other contributing cause or event.
17. Any loss or damage that cannot be attributed to an act of loss or damage covered by this **Policy**.
18. Any loss or damage caused by or resulting from unexplained or mysterious disappearance.
19. Any loss of damage or liability arising out of a Tropical Cyclone Warning Signal No.8 or above hoisted by the Hong Kong Observatory during the first three (3) days from the first **Commencement Date**.
20. Any loss or damage that can be compensated from other sources.
21. The **Building** age of **Premises** is above sixty (60) years on the **Commencement Date**.
22. An unlawful, wilful or malicious conduct of **You**.
23. Any loss that occurs outside any operative **Period of Insurance** or within any **Period of Insurance** where **You** have not paid for the premium.
24. **Your Premises** involving any kind of sub-letting or subdivision of a flat (subdivided units) is applied.

## Part 8. General Conditions

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These conditions apply to the whole of **Your Policy**.

### 1. Alteration to Risk

Any alteration to the risk after commencement of the **Policy** must be notified by **You** to **Us** in writing immediately after such change in risk comes to **Your** notice. Alterations that **You** must notify **Us** of include:

- (a) alteration of the **Premises**; or
- (b) the **Premises** being left unoccupied for a period of more than thirty (30) consecutive days; or

- (c) **Your** interest in any **Premises** ceasing; or
- (d) where the nature of the occupation of or other circumstances affecting the **Premises** are changed in such a way to increase any risk insured under this **Policy**; or
- (e) **You** being placed into bankruptcy, receivership, administration or liquidation.

If **We** accept the altered risk, **You** must pay **Us** any additional premium **We** require.

## **2. Hong Kong Law and Jurisdiction**

**Your Policy** is governed by the laws of **Hong Kong** and all legal actions concerning **Your Policy** must be brought at the courts of **Hong Kong**.

## **3. Mediation**

Any dispute or difference arising out of, or in connection with, this **Policy** must first be referred to mediation at the Hong Kong Mediation Centre (HKMC) and in accordance with the HKMC Mediation Rules in effect at the time of the mediation. **Your** genuine attempt in resolving the dispute via mediation is a condition precedent to **you** pursuing the claim. If **You** do not bring the dispute to mediation within six (6) months from the time of **Our** claim decision, then such claim against **Us** is deemed to be withdrawn or treated as abandoned and **You** are barred from pursuing the same claim against **Us**.

## **4. Legal Action**

No legal action shall be brought to recover on this **Policy** unless mediation has failed, and no such action shall be brought against **Us** after eighteen (18) months from the time of **Our** claim decision. If **You** fail to meet the time limit, then such claim against **Us** is deemed to be withdrawn or treated as abandoned and **You** are barred from pursuing the same claim against **Us**.

## **5. Assignment**

If **You** sell or transfer this **Policy** or use it for any other kind of purpose **We** will not recognize this. At all times **You** need to ensure that it is kept in **Your** possession or control.

## **6. Authorized Representative**

**You** agree that the person representing **You** when completing the proposal form is authorized to give and receive information on **Your** behalf. Any action taken or that should have been taken by **Your** authorized representative is considered to be an act or omission by **You**.

## **7. Changes in Policy**

No change in this **Policy** will be valid unless agreed to in writing by **Us**. The requirements of any Section of the **Policy** may not be deemed to be waived unless **We** agree to waive them in writing.

## **8. Clerical Error**

If there is any clerical error in **Your Policy**, this will not invalidate **Your** insurance already in force nor continue **Your** insurance already terminated. If this **Policy** is terminated for reason other than clerical errors made by **Us**, it cannot be reinstated.

## **9. Compliance with Policy Provisions**

Failure to comply with any of the provisions contained in this **Policy** shall invalidate all claims hereunder.

## **10. Conditions Precedent to Our Liability**

**Our** liability for any **Benefit** under this **Policy** is strictly conditional (as a condition precedent) upon:

- (a) the truth of the statements and information as provided to **Us** by **You**; and

- (b) the due observance and fulfilment of all terms and conditions of this **Policy** insofar as they relate to anything to be done or complied with by **You**.

**11. Hong Kong Currency**

Premium(s) and **Benefit**(s) payable under this **Policy** shall be in **Hong Kong** dollars. All payments by **You** to **Us** and **Us** to **You** or someone else under the **Policy** must be in **Hong Kong** currency.

**12. Excess**

**You** must pay the amount of any applicable **Excess** shown in the **Policy Schedule** or in this **Policy** in respect of each claim **You** make under the **Policy**. The **Excess** is payable by **You** at such time required by **Us**.

If any event leads to a claim under more than one Section of the **Policy**, **You** must pay the highest applicable **Excess**.

**13. Fraud**

The **Policy** is issued based on the completeness and accuracy of information **You** give **Us** during the policy enrolment. If there is any fraud, mis-statement or concealment during such enrolment, or if **You** or **Your** legal representative makes a dishonest claim, **We** will cancel this **Policy** immediately and will not pay any **Benefit**. All claims under this **Policy** will be forfeited.

**14. Gender**

A masculine personal pronoun as used herein includes the feminine, wherever the context requires.

**15. Geographical Limits**

The cover set out in the **Policy** is restricted to loss or damage sustained in **Hong Kong**, unless otherwise stated.

**16. Inspection and Salvage**

If **You** make a claim, **We** may inspect the property or item. While **We** have no obligation to take possession of any damaged property or item, **We** reserve the right to do so.

**We** are entitled to obtain and retain any property or items that are salvaged or recovered after **We** pay a claim by replacing or paying to replace such property or items. **We** may sell the property or items and keep the proceeds.

**17. Interest**

Unless other stated, no amounts payable by **Us** under this **Policy** shall carry interest.

**18. Interpretation**

This **Policy** and the **Policy Schedule** with attaching Sections and any amendments or endorsements shall be read together as one contract and any word or expression to which a specific meaning has been attached in any part of this **Policy** or the **Policy Schedule** shall bear such specific meaning wherever it may appear.

Please note that the English version of this **Policy** is the official version. This **Policy** provided to you in both English and Chinese languages for ease of reference only. The English version of the **Policy** will prevail if any dispute arises regarding the interpretation of any part of the **Policy**.

**19. Misrepresentation**

This **Policy** shall be voidable in the event of any misrepresentation, misdescription, non-disclosure or concealment of any circumstances by **You** which is material to or connected with **Your**:

- (a) risk experience and claim history; or
- (b) insurance record, including previous refusals to grant insurance coverage.

**20. Notice of Trust or Assignment and Third Party Rights**

**We** shall not be bound or be affected by any notice of any trust, charge, lien, assignment or other dealing with or in relation to this **Policy**.

A person who is not a party to this **Policy** contract shall have no right to enforce any of its terms, other than any rights conferred by law.

**21. Other Insurance**

To the extent permitted by law, when other insurance applies to a covered loss, **We** will pay only in excess of the other insurance, limited to the indemnity being provided under **Your Policy**, unless that other insurance was specifically written as an excess over the indemnity provided in **Your Policy**.

Should **You** make a claim under **Your Policy**, **You** must advise **Us** of any other insurance which may cover the loss or damage or **Accident**.

**22. Duplicate Coverage**

- (i) **You** may not be covered under more than one **Home Care Plus Home Insurance Plan** policy. If **You** are covered under more than one such **Policy** or other policy with same benefit(s) which underwritten by **Us**, only the policy with the greatest compensation amount of the benefit(s) will apply in claims and the benefits thereunder be payable.
- (ii) If **You** are covered under more than one policy which underwritten by **Us**, and all benefits under are identical, then only the policy with earlier commencement date will be kept, all other policies will be deemed to be void from inception, and the premium will be refunded with no interest.

**23. Payment of Claims**

Any receipt by **You** of any **Benefit** payable under this **Policy** shall in all cases be deemed final and complete discharge of all liability of **Us** in respect of such **Benefit**.

Upon **Your** death, all **Benefit(s)** which are payable to **You** under this **Policy** shall be made to **Your** estate.

**24. No Policy Reinstatement after Partial Loss**

When **We** pay a claim under **Your Policy** for partial loss or damage to the **Contents**, the **Sum Insured** will be reduced by the loss amount for each and every claim and shall not exceed the aggregate **Sum Insured**.

**25. Premium**

If **We** modify the premium, **We** will send **You** thirty (30) days' written notice to **Your** address on file prior to the effective date of modification.

**26. Reasonable Care**

- (a) **You** must take all reasonable measures to maintain all property insured under this **Policy** in sound condition and good repair;
- (b) take all reasonable precautions to prevent or minimize loss, damage, destruction, liability, compensation, cost or expense covered by this **Policy**; and
- (c) comply with all obligations and regulations imposed by law and by any authority.

**27. Renewal**

Applicable for monthly premium payment mode:

Subject to **Our** right to make any amendments to the premium rate, coverage, terms and conditions of this **Policy** as **We** deem appropriate on renewal, this **Policy** shall be renewed automatically on each **Renewal Date** for one (1) month. If either party wishes not to renew the **Policy** at the end of

any **Period of Insurance**, notice of cancellation must be given in accordance with Part 9. Cancellation of Your Policy Clause.

If no such notice has been given by either party, **Your** payment of the premium on each **Renewal Date** will result in a policy with the same terms and conditions automatically coming into existence for one (1) month from that **Renewal Date**.

Applicable for annual premium payment mode:

Subject to **Our** right to make any amendments to the premium rate, coverage, terms and conditions of this **Policy** as **We** deem appropriate on renewal, this **Policy** shall be renewed automatically on each **Renewal Date** for one (1) month until the expiry of twelve (12) months from the **Commencement Date** or subsequent **Anniversary Date**. If either party wishes not to renew the **Policy** at the end of any **Period of Insurance**, notice of cancellation must be given in accordance with Part 9. Cancellation of Your Policy Clause.

If no such notice has been given by either party, **Your** payment of the premium on each **Renewal Date** will result in a policy with the same terms and conditions automatically coming into existence for one (1) month until the expiry of twelve (12) months from the **Commencement Date** or subsequent **Anniversary Date**.

## **28. Repair or Replacement**

In case the loss of or damage of the item is beyond repair and/or model is no longer existing in the market, **We** shall reserve right to pay a reasonable replacement cost at **Our** own discretion (subject to depreciation of the item or other reference).

## **29. Subrogation**

If **We** make a payment under this **Policy**, all **Your** rights of contribution, indemnity or recovery will be subrogated to **Us**. **You** must not surrender any right to or settle any claim for contribution, indemnity or recovery without **Our** prior written consent. **You** must do all things and execute all documents to enable **Us** to sue in **Your** name for such contribution, indemnity or recovery.

Where **You** have agreed with another person or company (who would otherwise be liable to compensate **You** for any loss or damage which is covered by the contract of insurance) that **You** will not seek to recover such loss or damage from that person, **We** will not cover **You**, to the extent permitted by law, for such loss or damage.

## **30. Compliance with Applicable Economic and Trade Sanctions Laws**

This insurance does not apply to the extent that trade or economic sanctions or other laws or regulations prohibit **Us** from providing insurance, including, but not limited to, the payment of claims. All other terms and conditions of the **Policy** remain unchanged.

Chubb Insurance Hong Kong Limited is a subsidiary/branch of a US company and Chubb Limited, a NYSE listed company. Consequently, Chubb Insurance Hong Kong Limited is subject to certain US laws and regulations in addition to EU, UN and **Hong Kong** sanctions restrictions which may prohibit it from providing cover or paying claims to certain individuals or entities or insuring certain types of activities related to certain countries such as Cuba.

## Part 9. Cancellation of Your Policy

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### When **You** can cancel

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**You** can cancel **Your Policy** at any time.

In the event **You** are not satisfied with this **Policy** for any reason, **You** may exercise the right of cancellation during the free policy examination period (that is, within fifteen (15) days after the **Commencement Date**) with a full refund of paid premium, subject to no benefit payment has been made. In such event, this **Policy** shall be deemed to have been void from the **Commencement Date** of this **Policy** and **We** shall not be liable to pay any benefit.

After the free policy examination period, **You** must give **Us** thirty (30) days' written cancellation notice in advance if **You** want to cancel **Your Policy**. The cancellation will take effect at 12:00am (midnight) **Hong Kong** time on the next **Renewal Date** after the written cancellation notice is received.

If **You** cancel, **We** will refund the premium for **Your Policy** less an amount which covers the period for which **You** were insured. However, **We** do not refund any premium if **We** have paid a benefit after **Your Policy's** last **Anniversary Date**.

### When **We** can cancel

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**We** may cancel this **Policy** at any time by giving thirty (30) days' notice in writing to **You**. **We** will give **You** a notice in writing to **Your** address on file. If **We** cancel **Your Policy**, **We** will refund **You** the premium for **Your Policy** less an amount to cover the period for which **You** were insured. Any premium refund under **Your Policy** will not carry any interest. However, **We** do not refund any premium if **We** have paid a benefit after **Your Policy's** last **Anniversary Date**.

In addition to any other legal rights **We** may have under this **Policy** or otherwise, **We** may cancel **Your Policy** by giving **You** written notice if **You** or **Your** legal representative:

- (a) breach the duty of utmost good faith;
- (b) make a misrepresentation to **Us** before or at the time **Your Policy** was entered into;
- (c) breach a provision of **Your Policy**;
- (d) make a fraudulent claim under any policy of insurance;
- (e) engage in any act or omission which under **Your Policy** **You** are required to notify **Us** of, but **You** do not notify **Us**; or
- (f) engage in any such act or omission which under the terms of **Your Policy** authorizes **Us** to refuse to pay a claim either in whole or in part.

### Automatic cancellation

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**Your Policy** is cancelled automatically and without any written notice from **Us** if **You** do not pay any premium due to **Us** within thirty-one (31) days of when it is due. The cancellation takes effect from the date the premium **You** have paid **Us** ceases to cover the insurance under this **Policy**.

In the event that the premium charged to **Your** nominated Hang Seng Bank Account is not paid or **You** no longer being such an account holder, **Your Policy** is cancelled unless the premium is settled by other payment method.

If the initial premium is not paid, insurance cover shall be deemed to have been void automatically from the **Commencement Date** of this **Policy** and **We** shall not be liable to pay any claim hereunder.

## Part 10. Claims

### Claims Conditions Applicable to All Sections

#### 1. What **You** must do:

On the happening of any loss or damage or injury which does or could lead to a claim or on the happening of any event or occurrence which does or could lead to a claim under Section 2 – Personal Liability Cover.

**You** must, at **Your** own expense:

- (a) take all reasonable precautions to prevent further loss or damage or injury;
- (b) immediately inform **Us** at the address and claims centre telephone listed at the beginning of this **Policy**;
- (c) inform the police within twenty-four (24) hours if any property insured under this **Policy** is lost, stolen or of the occurrence of **Malicious Damage** or **Vandalism**;
- (d) take all reasonable precautions to recover lost or stolen property and minimize the claim;
- (e) not dispose of any damaged property without **Our** consent;
- (f) not arrange for the repair or replacement of any property insured under this **Policy**, in connection with any claim, without **Our** consent;
- (g) complete and lodge a claim form within fourteen (14) days with all necessary supporting documentation that **We** may reasonably require for the investigation and verification of the claim including but not limited to:
  - (i) full written details of the loss or damage or injury;
  - (ii) any relevant receipts, certificates and other proofs of ownership;
  - (iii) all valuations relating to lost or damaged property;
  - (iv) all court issued documents including any statement of claim, summons, initiating process, cross claim, or third party notice;
  - (v) all property inspection reports and inventories if the claim involves **Malicious Damage** or **Vandalism**, burglary or theft;
  - (vi) reports that have been obtained from the police, a carrier or other authorities about an **Accident**, loss or damage; and
  - (vii) all medical and other certificates and evidence required by **Us** that is reasonably required to assess the claim.
- (h) send to **Us** all documents immediately which show that a claim is or may be made against **You** (including but not limited to correspondence, any letter or letter of demand or letter of complaint, any writ or court documents, any subpoena, or any formal legal document);
- (i) not admit liability for, or offer to agree to settle or pay any amount to settle, any claim brought against **You** without **Our** prior written consent; and
- (j) assist **Us** in the defence of any claim brought against **You**.

#### 2. Applicable under Section 1 - Contents Cover and Section 5 - Optional Benefits: Building Cover:

- (a) **We** will, at **Our** option, where it is determined by **Us** that the claim is payable under this Section:
  - (i) repair or replace the damaged **Contents** or pay **You** the reasonable **Replacement Cost** thereof (provided that **Our** liability under no circumstances will exceed the **Sum Insured** of **Contents Cover**); or
  - (ii) pay **You** up to the **Sum Insured** of the **Contents Cover**.
  - (iii) The maximum amount **We** will pay for loss or damage to the **Valuables** shall not exceed the amount defined in the **Policy Schedule** or the **Sum Insured**, whichever is lower, less the **Excess** stated in the **Policy Schedule** in respect of the above items, taking into account the relevant limits that apply to **Valuables**.

- (b) Where **We** choose to replace or pay the reasonable **Replacement Cost** of the damaged **Contents**, it will be done on 'New For Old' basis with similar but no better quality of existing, meaning that the replacement item will be of the same kind with no deduction for wear and tear and depreciation. Deduction for wear and tear and depreciation will apply to **Personal Effects**. Deduction for wear and tear and depreciation will also apply to **Building** for building aged ten (10) years or above (provided that the optional benefit of **Building Cover** is operative). **We** may, at **Our** option, provide the replacement item or pay a reinstatement settlement.
- (c) For any claim related to repair of the **Accidental** damaged item, the repair service must be performed by an official authorised service support centre or authorised repairers, or other repairers with **Our** consent.
- In case the official authorised service support centre or authorised repairers, or other repairers with **Our** consent judged that the item is beyond repair and/or model is no longer existing in the market, **We** shall reserve right to pay a reasonable replacement cost at **Our** own discretion (subject to depreciation of the item or other reference).
- (d) If loss or damage payable under this **Policy** occurs to an item, which is part of a pair, set, system, collection or larger unit, **We** will only pay up to the proportional part of the insured value of pair, set, system, collection or larger unit. **We** will not pay any allowance for any special value that the item may have in forming part of a pair, set, system, collection or larger unit or for any reduction in the value of the remaining part or parts.
3. An **Excess** will be imposed for each and every claim made under this Section as defined in the **Policy Schedule**.
4. **We** may have **You** medically examined at **Our** expense when and as often as **We** may reasonably require after a claim has been made for **Your Accidental Injury**. **We** may also arrange an autopsy if **We** reasonably require one.
5. Failure to notify **Us** within the time limit prescribed does not invalidate the claim if it can be shown to **Our** satisfaction that notice (with supporting documents and information) has been provided as soon as reasonably possible, provided that notice must be given at the latest within thirty (30) days from the happening of any loss, damage or injury, or when **You** first become aware of a potential claim against **You** which may fall under Section 2 – Personal Liability Cover of this **Policy** and no later than thirty (30) days after the end of the **Policy** Period.
6. In the event of a claim, **We** may make any investigation **We** deem necessary and **You** shall co-operate fully with such investigation. Failure by **You** to co-operate with **Our** investigation may result in denial of the claim.

## Part 11. Dispute Resolution

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If **You** are not happy with the way in which **Your Policy** was sold to **You** or any other aspect of **Your Policy**, please contact:

The Customer Service Manager  
**Chubb Insurance Hong Kong Limited**

39/F, One Taikoo Place  
979 King's Road  
Quarry Bay, Hong Kong  
O +852 3191 6222  
E cs.hk@chubb.com

**We** have developed an internal procedure for dispute resolution in accordance with “The Code of Conduct for Insurers”. If at any time **You** have an unresolved complaint about **Our** products or services, **You** can use **Our** internal dispute resolution process. **Your** query or complaint will then be reviewed and **We** will respond within fifteen (15) working days. If **You** are unhappy with the outcome of **Our** internal review of **Your** complaint, **You** may take **Your** complaint, at no cost to **You**, to the Insurance Complaints Bureau for assistance. Contact details are given below:

### **Insurance Complaints Bureau**

29th Floor, Sunshine Plaza,  
353 Lockhart Road, Wanchai, Hong Kong.  
F +852 2520 1967

## Part 12. Personal Information Collection Statement

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Chubb Insurance Hong Kong Limited (“**We/Us/Our**”) want to ensure any customer (“**You/Your**”) who provides personal identifiable information (“**Personal Data**”) to **Us** are confident that **Your Personal Data** is treated with the appropriate degree of confidentiality and security.

This Personal Information Collection Statement sets out the types of **Personal Data** **We** may collect, the purposes for collecting **Personal Data**, how and when **We** may use and disclose the **Personal Data**, and how **You** may access and correct **Your Personal Data**.

The types of **Personal Data** **We** collect from **You** depends on **Your** relationship with **Us**. The **Personal Data** may include but not limited to **Your** name, date of birth, identification document number, contact details (e.g. phone number, address, email address), financial information and account details, medical information, claims history, photographs and location information. Sometimes **You** may provide **Personal Data** about another person to **Us**, in doing so **You** confirm **You** have obtained that person’s consent and have the authority to provide such **Personal Data** for use and transfer by **Us**.

### a. Purposes of Collection of Personal Data

**We** will collect and use **Your Personal Data** for the purposes of creating, distributing and providing competitive insurance products and services, including **Our** processing of **Your** applications for insurance products, administering and managing **Your** and **Our** rights and obligations in relation to such insurance cover. **We** also collect **Personal Data** to identify products and services for **You**, to conduct research, surveys and analytics, and to market **Our** products and services. **We** may require **You** to provide certain **Personal Data** on mandatory basis for enabling **Us** to provide **You** with **Our** products and/or services.

### b. Direct marketing

Only with **Your** consent, **We** may use **Your** name, phone number, address, email address to contact **You** on marketing **Our** insurance products and services via mail, email, phone or messaging. **You** may notify **Us** to cease direct marketing by writing to **Our** Data Privacy Officer at the address stated below.

### c. Transfer of Personal Data

All **Personal Data** **We** collect will be kept confidential and will not be disclosed nor transferred to any other parties without **Your** prior consent, but subject to any applicable law, **Your Personal Data** may be disclosed or transferred to the following parties (whether within or outside Hong Kong Special Administrative Region):

- i. third parties who assist **Us** to achieve the purposes set out in paragraphs a and b above. For example, **Our** relevant staff, contractors, agents, service providers and others such as data analysts, professional advisers, loss adjudicators and claims investigators, doctors and medical service providers, expert consultants, emergency assistance providers, credit reference bureaus, government agencies, reinsurers and reinsurance brokers;
- ii. **Our** parent and affiliated companies;
- iii. the relevant insurance intermediary; and
- iv. others for the purposes of public safety and law enforcement.

### d. Access and correction of Personal Data

**You** may access and correct **Your Personal Data** held by **Us** and **We** will do so unless there is any legal reason why **We** may refuse to do so. Please email **Our** Data Privacy Officer at [Privacy.HK@chubb.com](mailto:Privacy.HK@chubb.com) or mail to **Us** at 39/F, One Taikoo Place, 979 King’s Road, Quarry Bay, Hong Kong. If **We** levy any charges for providing information on your request, such charges will not be excessive. **We** will not charge **You** for updating **Your Personal Data**.

# 家安心家居保障計劃(中文譯本)

英文版本為正式版本。如因對本保單內任何地方的詮釋而引起任何爭議，均以英文版本為準。

## 第一部分 一般建議

閣下必須詳細考慮本產品是否切合自己的要求、財務狀況及需要。此外，閣下亦需要認真閱讀保障的各項限制條款、種類及保額以決定本計劃是否合適。

## 第二部分 關於承保公司

安達保險香港有限公司(於香港註冊成立，其註冊辦事處地址為：香港鰂魚涌英皇道 979 號太古坊一座 39 樓(安達保險)為本保險產品的承保公司。在本保單條款內，我們或我們的皆指安達保險香港有限公司。以下是聯絡我們的方法：

電話 +852 3191 6800

電郵 [Inquiries.HK@chubb.com](mailto:Inquiries.HK@chubb.com)

## 第三部分 我們可以提供的保障

在閣下投購此保險時完成申請手續。我們已依據閣下給予的資料按保單的條款提供保障。閣下提供的資料將構成本保險合約的基礎。我們會依據在申請表、保單條款、及任何其他文件，包括我們簽發給閣下最新的承保表內的條款，向閣下提供保障。

承保表記載與閣下保險有關的重要資料，包括生效日、閣下需繳付的保費、閣下保障的保障金額及透過批註更改的任何標準條款。

以上提及的全部將構成閣下與我們之間的保單。

## 第四部分 有關閣下保單的重要資料

### 閣下的保單

閣下的保單條款及承保表記載了閣下與我們之間的保險合約。

作為閣下繳付保費的代價，我們將依據閣下的保單條款及承保表內的條款、細則及不保事項的規定，為閣下提供受保事件的保障。

請閱讀閣下的保單。

小心閱讀及了解閣下的保單條款及承保表是十分重要的，因為它們記錄了閣下的保單內所列明保險的條款、細則及不保事項。

### 檢查閣下的保單

小心檢查閣下的保單條款及承保表，確保記載的所有資料皆正確無誤。如需作任何更改，請通知我們。如閣下需更新住址或銀行戶口的資料，請聯絡我們。

### 披露義務

在閣下與我們簽訂保單前，閣下必須全面及如實地披露閣下知悉或應當知悉的，並與我們向閣下提供保險及我們計算保費有關的所有事實，否則我們有權取消本保險，或拒絕向閣下的索償作出賠償，或閣下可能不能得到本保單的保障。

保單項下的承保範圍是以閣下於投保書內向我們提供的資料為基準。假如閣下向我們提供的任何資料是不正確的，請即時通知我們，否則閣下可能未能就有效的索償得到保障。

假如閣下其後向我們提供的資料與投保書內所載的資料有重大差異，我們可能會以不同的條款提供保障或拒絕提供保障。

如閣下有任何疑問或需要聯絡我們時，可致電+852 3191 6800 或以書面郵寄香港鰂魚涌英皇道 979 號太古坊一座 39 樓安達保險香港有限公司。

#### 安全保管閣下的文件

閣下必須把自己的**保單條款**、**承保表**及任何批註(如有)放置於一個安全的地方，確保日後能隨時查閱。

閣下的**保單**內部份類別的保障要求閣下向我們提供收據及其他證明文件。閣下必須把這些文件放置在一個安全的地方，以便我們處理索償時能使用。

## 第五部分 詞彙的釋義

在閣下的**保單**內某些詞彙具指定涵義(不論以單數或複數表示)，我們將該等詞彙定義如下。為協助閣下識別有關詞彙，特將此等詞彙全部以粗體表示。

**意外**指突發、不能預見、偶然發生及非計劃的事件。**意外事故**一詞須據此解釋。

**意外身亡**指：

- (a) 因**意外受傷**引致的死亡；及
- (b) 在引致損傷的**意外**發生後的一百八十(180)日內發生的死亡。

**意外受傷**指由**意外**而非因病所致的身體損傷，並需符合下列條件：

- (a) 因暴力、外在及可見的手段所致；及
- (b) 在**受保期間**內發生的；及
- (c) 在**意外**發生後的一百八十(180)日內發生的；及
- (d) 除下列兩者外，須與其他因素無關：
  - (i) **意外**；及 / 或
  - (ii) 因**意外**後必須進行的醫療或手術治療而直接引起的疾病；及
- (e) 可能包括因閣下在**意外**中直接及不可避免地暴露於自然環境所造成的**身體損傷**。

**日常生活活動**指在沒有他人協助的情況下進行的以下活動：

- (a) 進食 – 就已提供的食物俱有自行進食的能力。
- (b) 穿衣 – 穿上、脫下、固定及解開衣服及護具、義肢或其他醫療器材的能力。
- (c) 移動 – 從一個房間移動到另一個位處同一地面的房間之能力。
- (d) 如廁 – 使用廁所或以其他方式處理腸道及膀胱功能的能力，以保持於良好的個人衛生水平。
- (e) 沐浴 – 在浴缸或淋浴間洗澡(包括進出浴缸或淋浴間)或通過其他方式完成洗澡的能力。
- (f) 轉移 – 從床位與直立椅子或輪椅兩者之間移動的能力。

**恐怖活動**指針對任何個人、財物或政府而對人命或財物作出實際或威脅使用武力或暴力，或引致損毀、損傷、損害或干擾，或作出任何危險活動，不論有關活動的已明示或未明示目的是尋求經濟、人種、民族、政治、種族或宗教利益，不論該等利益是已申報與否。主要為個人利益而進行的搶劫或其他刑事活動或主要由於犯罪者及受害者以往的個人關係而發生的活動概不被視為**恐怖活動**。**恐怖活動**應包括任何被(相關)政府核實或確認為恐怖活動的活動。

**週年日**指由本保單生效日起計一(1)年及之後每一周年的同日。

**保障**指**承保表**內列明的保障，**我們**會根據本**保單**的條款及細則就本**保單**承保的各項損失或**身體損傷**事件提供有關保障。

**身體損傷**指於**受保期間**純粹及完全由**意外**造成的身體損傷。

**易碎物品**指玻璃、水晶、瓷器、陶瓷、陶器、石頭、花瓶或裝飾品、玻璃器皿或類似的易碎物品。玻璃屋或溫室的一部分、時鐘、畫作、電視機、收音機或電腦顯示器的一部分，或者佩戴或手持的物品，例如眼鏡、手錶、相機和雙筒望遠鏡，不被視為**易碎物品**。

**建築物**指**閣下**的物業範圍內的以下各項：

- (a) 私人住房或住宅；
- (b) 牆壁、地板及天花的固定覆蓋物；
- (c) 固定泳池；
- (d) 露臺及後院；
- (e) 小徑、車路及花園；
- (f) 閘門及圍欄；
- (g) **閣下**的物業的設備和裝置；
- (h) 私人住房或住宅外牆的固定窗戶或玻璃；
- (i) 建築物外的窗簾及天蓬；
- (j) 由主要管道連接至私人住房或住宅內的煤氣、供水或供電管道。

**業務**指任何業務、交易、專業、職業、代牧、放牧、經營農場、商業或收益活動，但這並不指**建築物**的租賃。

**民眾騷亂**指由平民發起的動亂、騷亂或擾亂公共秩序，通常是針對規管機構或該等規管機構的政策。

**生效日**指已列於**閣下**的**承保表**內的日期的香港時間凌晨十二時零一分(12:01 a.m.)。

**家居物品**指**章節 1 - 家居物品保障**所定義的家居物品。

**信用卡**指由恒生銀行有限公司及 / 或其附屬公司發行的個人信用卡，不包括任何公司信用卡或商務信用卡。

**貨運公司**指負責將貨物最終送達給**閣下**的貨運公司。

**合資格物品**指符合以下條件的物品：

- (a) 在有效的**受保期間**內購買的；及
- (b) 僅為個人使用而購買的；及
- (c) 於購買時為全新且未曾使用；及
- (d) 透過**零售商**或**商家**購買；及
- (e) 其費用已直接於**信用卡**收取。

**自負額**指當**閣下**提出一項索償時，**閣下**必須支付損失的首筆金額，**我們**只負責支付超過該金額的部份(上限為**承保表**內列明的**保額**)。**自負額**適用於各項損失或索償。當損失是在**自負額**範圍內，**我們**則毋須負責賠償。假如**承保表**內列出多於一項**自負額**，則以金額較高者為適用。

**家庭成員**指與**保單**持有人永久同住於物業內的配偶、伴侶、子女、父母及其他親屬。

**水災**指水從任何天然水道、湖泊、水庫、運河或水壩的正常範圍漏出或釋出，使正常為乾旱的土地被淹沒。

**香港**指中華人民共和國香港特別行政區。

**惡意破壞或故意破壞**指惡意驅使破壞財物的錯誤作為，但這並不包括：

- (a) 疏忽、不小心、差劣的家務管理或不衛生的生活習慣；
- (b) **閣下**或租戶，或代表**閣下**或租戶的任何人士在進行維修工程期間出現的破壞；
- (c) 因**閣下**或租戶或代表租戶的任何人士進行維修或試圖進行維修而造成的破壞；
- (d) 因**閣下**或租戶的未能管束兒童而造成的破壞；
- (e) 因**閣下**或租戶的寵物造成的破壞；
- (f) **意外損壞或意外損失**；或
- (g) 刮花、凹陷、剝落、磨損或磨壞。

**手提電話**指具有通訊功能的手提電話或智能手機。

**金錢 / 個人金錢**指現金、支票、債券、銀行本票、旅行支票、郵政或現金匯票、禮券或代用券。但不包括所有虛擬貨幣，例如比特幣、任何類型的電子錢包、非同質化代幣或任何類型的加密貨幣及任何銀行卡。

**露天範圍**指非由牆壁及屋頂完全遮蓋或不能完全關閉的**物業**範圍，包括但不限於下列範圍：

- (a) 陽臺、走廊、涼亭或車棚；或
- (b) 任何於**物業**土地範圍內的露天範圍。

**伴侶**指在發生可能導致索償**保障**的損失時，已與**保單持有人**有確實伴侶關係及已一起同住三(3)個月或以上的同居伴侶。

**受保期間**指由**生效日**或最近的**續保日**起計的一(1)個月，以較後者為準。除非我們在**續保日**前通知**閣下**的**保單**將不再受續保或修訂**保障**，否則在**閣下**繼續繳付保費的情況下，一份具有相同條款及細則的**保單**將由**續保日**起自動生效一(1)個月。然而，如**閣下**的**保單**被取消或因其他理由被終止，則**受保期間**將由**生效日**或**續保日**起計，以較後者為準，直至取消或終止**保單**的當日為止。

**永久完全殘疾**指完全、直接或獨立於所有其他原因導致的身體損傷，並於引致該身體損傷之**意外**事故發生後的一百八十(180)天內，導致**閣下**在餘生中無法進行至少三(3)項**日常生活活動**，及**閣下**在餘生中無法從事任何賺取報酬的工作。並且經由醫生證明以上情況在餘生中皆沒有改善的希望。

**醫生**指根據所在國家的法律在其執照範圍內正式註冊和執業的合法醫生或外科醫生。除非我們另有批准，否則**醫生**不得包括**閣下**、**家庭成員**或**閣下**的任何親屬。

**個人文件**是指屬於**閣下**的護照、駕駛執照、**香港**身份證及政府簽發的旅行文件。

**個人物品**指在**物業**以外世界任何地方，於損失或損毀發生時由**閣下**實際攜帶及穿戴的任何物品，但不包括現金或任何種類的**金錢**或在**運動**活動進行期間使用的任何**運動設備**、**手提電話**、任何類型的電腦或平板電腦、電腦系統和配件。

**寵物**指經常飼養於**閣下**的**物業**中，以**閣下**為伴並已植入微型晶片及 / 或領取牌照的家犬或家貓。

**保單**指我們與**閣下**訂立的協議，該協議包括**保單條款**、**閣下**的投保書、**承保表**及任何由我們書面向**閣下**發出的任何批註或其他文件。

**保單持有人**指為本**保單**作申請及付款並已列於**承保表**內之人士或公司。

**承保表**指包含與**閣下**的保險相關重要資料的文件，包括**受保期間**、**閣下**的保費、**閣下**的**物業**詳情、適用的**自負額**，及以批註的方式更改任何的標準條款。

**保單條款**指本文件。

**保單年度**指在本保單內每連續十二(12)個月的**受保期間**，首次由**生效日**起計及此後每個**週年日**起計。

**物業**指閣下於香港的私人住宅：

- (a) 只用作住宅用途；及
- (b) 列明於**承保表**內的受保物業地址；及
- (c) 由磚塊、石塊或混凝土建成，並使用混凝土製的屋頂；及
- (d) 該物業之樓齡在**生效日**當天必須為六十(60)年或以下。

如對物業的範圍有任何爭議，以樓契所附的平面圖為準。

**續保日**指由**生效日**起計一(1)個月後及以後每個月之同一日。

**替換成本**指替換、重建或維修**建築物**及 / 或**家居物品**至最大限度與新置狀況一樣的費用。假如**建築物**是文化遺產或具建築特色及 / 或**建築物**的結構物料具有觀賞、古物或歷史特色或原材料在**建築物**及 / 或**家居物品**於損失或損毀時無法獲得，則**替換成本**應指使用原設計及適合的相等物料重建或替換或修理或修復至合理的相等外觀及狀況。

**零售商或商家**指直接向消費者銷售商品之零售商店、網上商店、虛擬商店或電話營銷的註冊貿易公司。

**暴亂**指任何人士與其他人士參與任何擾亂公眾和平的行為(不論是否與罷工或停工有關)，或任何合法組成的政府機關鎮壓或試圖鎮壓任何該等騷亂或減低該等騷亂的後果的行動。

**運動**指任何需要閣下使用技能或體能的體育活動。

**風暴**指大氣的劇烈擾動，包括可能與雷電、雨水、雨雪及冰雹一同發生的強風。

**保額**指我們於每一個**保單年度**內根據本保單的每項**保障**所支付的最高金額，該金額已註明於**承保表**或任何與該**保障**相關的批註中。

**未經授權交易**指未獲閣下批准而以閣下的**信用卡**進行的交易，且這些交易是透過互聯網、電話或電視等方式進行的。

**不適宜居住**指物業的狀況處於不安全且不適合居住，並且需要超過二十四(24)小時才能使物業恢復到適合居住的狀態。

**貴重財物**指：

- (a) 珠寶、手錶、皮草、美術品、郵票和硬幣收藏；
- (b) 貴重金屬物品、黃金或銀或白金或其他貴重金屬物品或玉石；
- (c) 古董、名畫、藝術品。

**我們 / 我們的**指安達保險香港有限公司。

**閣下 / 閣下的**指物業的合法佔用者：

- (a) 以業主或租戶身份作為**保單持有人**；及 / 或
- (b) 永久居住於物業的合法佔用者，但不包括家庭傭工及任何透過**保單持有人**作為業主所簽訂的租賃協議而合法居住之人士；及 / 或
- (c) **家庭成員**。

## 第六部分 保障項目

### 章節 1 家居物品保障

我們在章節 1 的責任(包含章節 1.3 內的所有額外保障及章節 3 內的所有附加保障)最高限額為**承保表**內所列明的相關最高**保額**，並受**承保表**內列明的相關分項限額約束。

#### 1.1 家居物品的釋義

**家居物品**指下列物品置於**閣下**的物業及屬於**閣下**所擁有：

- 地毯、室內百葉窗及窗簾；
- 衣服及鞋；
- 廚房用具及器具；
- 餐具；
- 浴室用具及器具；
- 娛樂設備(如電視、影視音響器材)；
- 其他設備(如洗衣機、乾衣機)；
- 床單及毛巾；
- 非永久固定的泳池及浴池；
- 傢俱及燈飾；
- **閣下**已完成及沒有受管理公司或其他保險保障的修葺、固定裝置或家居結構性裝修；
- **手提電話**；
- 樂器；
- 其他家庭或個人雜物；
- 其他珍藏物及**貴重財物**；
- **易碎物品**；
- 盆栽；及
- **運動用品**。

**家居物品**並不包括以下物品：

- **寵物**、鳥、魚及動物；
- 機動車輛及其附件包括但不限於汽車、貨車、電單車、小型單車及農用車、高爾夫球車、坐騎式草坪車、電動單車、電動滑板車及電動輪椅；
- 船隻；
- 使用中的**運動用品**；
- 高速滑艇；
- 飛機、無人機或航空裝置，不包括不能被駕駛的模型飛機或玩具風箏；
- 任何地面或海面氣墊運載工具；
- 房客、寄宿家庭或客人的財物(不論繳付房租與否)；
- 蓬車及拖車；
- 樹木、灌木及其他植物，於花盆栽種除外；
- 沒有根據相關法例註冊或存放的槍械；

- 任何用作閣下的業務或受僱用途的財物；
- 食物及飲品；
- 隱形眼鏡；
- 任何類型的金錢；
- 電子資料；
- 任何類型的電腦或平板電腦、電腦系統和配件；
- 土地或食水；
- **建築物**；
- 任何用作生產能源裝置，包括但不限於任何類型的太陽能板(例如：太陽電子板或光伏板)；
- 花園傢俱、任何置於露天範圍的物品或室外傢俱；及
- 任何種類的盥洗用品、護膚品和 / 或化妝品。

## 1.2 家居物品保障

除非本保單另有規定，我們將就閣下的物業內的家居物品(手提電話除外)於受保期間因發生意外而造成的實際損失或損毀向閣下提供保障。

我們將賠償在受保期間閣下的物業因發生入屋偷竊或爆竊而導致的手提電話損失，唯必須在發現該事件起計的二十四(24)小時內向警方報告並獲得相關之調查報告。

我們對任何一件家居物品的最高責任均不得超逾家居物品之保額的 10%，以及承保表內就家居物品、貴重財物、易碎物品及手提電話所列明的相關分項限額規限。

承保表所列之自負額適用於每次及每項索償。

## 1.3 額外保障及限制

章節 1.3 內的所有額外保障均受承保表內所列明的最高保額及適用的分項限額所約束。

### 1.3.1 臨時住所保障

#### (A) 臨時住所

於受保期間，若閣下的物業由閣下佔用的情況下，因本保單章節 1 或章節 5 的受保意外導致閣下的家居物品或建築物(前提是自選保障建築物保障有效)實質損失或損毀以致該物業或建築物不適宜居住，我們將向閣下支付合理及實際的臨時住所費用。自負額不適用於此保障。

#### (B) 寵物緊急託管

若閣下的物業根據章節 1.3.1(A)判定為不適宜居住，我們將向閣下支付因寵物暫住於註冊的寵物寄養設施而所產生合理及實際的費用。自負額不適用於此保障。

### 1.3.2 租金損失

於受保期間，若閣下的物業由閣下的租戶以需要繳付租金的情況下佔用，並且由於本保單章節 1 或章節 5 的受保意外導致閣下的家居物品或建築物(前提是自選保障建築物保障有效)實質損失或損毀以致該物業或建築物不適宜居住，我們將向作為該物業業主之閣下支付實際損失的租金，或閣下為該租戶安排臨時住所的合理及實際費用，兩者以較低者為準，惟：

- 租金的實際損失是根據閣下作為業主在章節 1.3.2 承保的損失或損毀發生前三(3)個月內根據物業的租賃協議從支付租金的租戶收取的平均租金；
- 我們將支付的租金金額最多為自閣下的物業發生不適宜居住該日起計三(3)個月；及
- 在遺失或損壞發生時，以及於不適宜居住期間，該物業必須有一份已簽署且有效的租賃協議(含印花稅)。

### 適用於章節 1.3.2 租金損失的不保事項：

- (a) 閣下的物業在損失、損壞或損毀時已超過連續三十(30)日無人居住；
- (b) 閣下的物業或其任何部分被轉租；
- (c) 在損失、損壞或損毀時閣下已不再擁有閣下的物業或家居物品的合法權益；
- (d) 閣下於意外發生之前已發出或之後一(1)個月發出終止物業的租賃通知；
- (e) 物業因閣下或任何獲得閣下同意或代表閣下進行修復或重建時發生拖延或延誤的期間；
- (f) 任何索償涉及合法租戶對閣下的物業作出任何故意或惡意行為。

承保表所列之自負額適用於每次及每項索償。

### 1.3.3 搬遷時的家居物品

於受保期間，若閣下聘請專業搬運公司協助從閣下的物業搬遷往香港境內的新家居，我們將保障閣下的家居物品在搬運途中因意外導致的實質損失或損毀。承保表所列之自負額適用於每次及每項索償。

此外，若損失在章節 1.3.3 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。

### 1.3.4 物業以外的個人物品及貴重財物

於受保期間及意外發生時，屬於閣下及由閣下穿戴的個人物品及貴重財物在物業以外的世界任何地方因意外而導致實質損失或損毀，並且俱有充分證明及 / 或警方報告或同等報告以茲證明，我們將向閣下作出有關賠償。承保表所列之自負額適用於每次及每項索償。

此外，若損失在章節 1.3.4 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。

### 1.3.5 個人現金因物業遭偷竊或爆竊而損失

於受保期間，我們將向閣下賠償若閣下的物業因入屋偷竊或爆竊而導致之閣下的個人金錢損失，惟閣下必須於發現事件後二十四(24)小時內向警方報案及獲取有關調查報告。自負額不適用於此保障。

此外，若損失在章節 1.3.5 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。

### 1.3.6 更換窗戶、門鎖及鎖匙

於受保期間，我們將向閣下賠償若閣下的物業因入屋偷竊或爆竊或未經許可進入，而被損毀的窗戶、門鎖及鎖匙所需之實際及合理的替換成本，惟僅限於與原有質素相若而非較佳品質的同類替換。自負額不適用於此保障。

### 1.3.7 因物業遭偷竊或爆竊而補領個人文件

於受保期間，我們將向閣下賠償若閣下的物業因入屋偷竊或爆竊而導致閣下的個人文件損失或損毀時，所需的實際及合理的替換成本，惟閣下必須於發現事件後二十四(24)小時內向警方報案及獲取有關調查報告。自負額不適用於此保障。

此外，若損失在章節 1.3.7 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。

### 1.3.8 因物業遭偷竊或爆竊而信用卡被盜用

於受保期間，我們將向閣下賠償若閣下的物業因入屋偷竊或爆竊而導致屬於閣下的信用卡遺失，並因此導致未經授權使用屬於閣下的信用卡(家庭成員未經授權使用除外)而造成的實際損失，惟必須於發現事件後二十四(24)小時內向警方和信用卡發行機構報告，及獲取有關調查報告，及信用卡持有人已遵守發出信用卡時的所有條款和條件，並且該損失無法從任何其他來源討回。自負額不適用於此保障。

此外，若損失在章節 1.3.8 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。

### 1.3.9 冷藏食品

於受保期間，我們將向閣下賠償因電力供應意外故障導致儲存於閣下物業內的冷藏食品損壞，而該意外故障不是由供電機構或其僱員故意造成的。自負額不適用於此保障。

#### 1.3.10 信用卡盜用保障

於受保期間，若閣下的信用卡仍在閣下手中，但發生未經閣下同意而使用閣下的信用卡資料進行的未經授權交易，我們將就閣下首次事發後向發卡機構報告該事件前兩(2)個月內的未經授權交易向閣下支付因而造成的經濟損失補償。

我們的責任受以下約束：

- (a) 閣下必須遵守發卡機構的信用卡條款及條件，報告任何未經授權使用；
- (b) 閣下必須按照發卡機構的信用卡條款和條件使用信用卡；
- (c) 閣下的賬戶必須有效且信譽良好；如果在事件發生之日、提交索償之日或可能支付賠款之日，閣下的賬戶處於拖欠、催收款或取消狀態，則不會支付保障；
- (d) 閣下必須在發現後二十四(24)小時內向警方和信用卡發卡機構報告，及獲取有關調查報告；
- (e) 閣下應首先聯繫信用卡發卡機構，查詢閣下的信用卡上任何未經閣下授權或批准的交易。如果經信用卡發卡機構調查後確認出現了未經授權交易，閣下必須盡快並在事件發生後的十四(14)日內向我們提交任何索償。閣下將被要求提供來自閣下的信用卡發卡機構的未經授權交易證據，例如銀行結單、獎賞卡結單或其他此類財務報表，並須向我們披露引起索償的真正原因。

閣下的信用卡發卡機構在某些情況下可能會就這些未經授權交易向閣下進行補償，但如果閣下的信用卡發卡機構書面拒絕承擔責任，並且閣下已遵守閣下的信用卡發卡機構的條款和條件，那麼我們將就這些交易向閣下進行補償。

適用於章節 1.3.10 信用卡盜用保障的不保事項：

- (a) 任何自動櫃員機提款卡及扣賬卡；
- (b) 使用閣下的信用卡進行的任何提取現金的交易；
- (c) 使用「VISA 驗證」或「萬事達卡安全碼」的服務或任何類似的信用卡安全服務進行的任何交易；
- (d) 使用個人識別號碼、PIN 及 / 或密碼進行的任何交易；
- (e) 任何在香港以外發行的信用卡或非由恒生銀行有限公司及 / 或其附屬公司發行的信用卡或任何公司信用卡；
- (f) 任何可以從任何其他來源收回的損失；
- (g) 由閣下的親屬或家庭成員或經閣下授權使用閣下的支付卡或電子貨幣賬戶的人士所產生的任何費用；
- (h) 並非在受保期間內發生的損失；
- (i) 因任何類型的系統、惡意軟件及 / 或數據黑客攻擊而導致的任何損失及 / 或未經授權的收費，及 / 或由金融機構、商家、零售商或支付系統服務供應商監管的任何數據或數據庫被偷竊或濫用而造成的任何損失；
- (j) 任何因刷卡或信用卡複製而導致的任何損失及 / 或未經授權的費用：
  - i. 當信用卡已交付給指定收件人以外的其他人時；
  - ii. 當閣下未能遵守與信用卡發卡機構的合約規定的責任時；
  - iii. 當信用卡發卡機構未能遵守與相關監管機構的合約規定的責任時；
  - iv. 對於任何類型的民事責任；
  - v. 當發生欺詐行為時，例如偷竊或濫用由信用卡發卡機構或其僱員或家屬監管的任何數據或數據庫等；或

vi. 當信用卡發卡機構監管的軟件或硬件出現故障時。

此外，若損失在章節 1.3.10 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。自負額不適用於此保障。

### 1.3.11 物業以外遺失個人文件

於受保期間，我們將向閣下賠償閣下的個人文件在世界任何地方因意外損失或損毀而補領閣下的個人文件所需之實際且合理的替換成本。惟閣下必須於發現事件後二十四(24)小時內向警方報案及獲取有關調查報告。自負額不適用於此保障。

此外，若損失在章節 1.3.11 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。

### 1.3.12 儲存於物業以外的家居物品

於受保期間，我們將就以下原因而導致儲存於香港境內閣下的工作場所或閣下擁有或租賃的儲物設施(包括迷你倉)時，閣下的家居物品因意外導致的實際損失或損毀作出賠償：

- (a) 火災、閃電、爆炸、地震、暴亂及民事騷亂；
- (b) 於損失或損毀時存放家居物品的建築物遭受風暴、水災、惡意或蓄意破壞、水或油泄漏或碰撞；
- (c) 證據顯示曾有人使用武力進入該建築物進行偷竊或爆竊。

承保表所列之自負額適用於每次及每項索償。

### 1.3.13 新居保障

於受保期間，若閣下永久搬至位於香港境內的其他居所作為閣下的新主要居住地點，我們將在以下情況保障閣下的家居物品：

- (a) 當閣下的家居物品存放於閣下當前物業最多六十(60)日或直至保單到期日(以較早者為準)，從閣下開始將閣下的家居物品搬至新居所起計；或
- (b) 位於閣下的新居所。

此外，若損失在章節 1.3.13 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。承保於章節 1.2 位於閣下物業內的家居物品除外。

閣下必須在搬至新居所六十(60)日內通知我們，並提供新居所的詳細資料。承保表所列之自負額適用於每次及每項索償。

適用於章節 1.3.13 新居保障的不保事項：

未有在搬至新居所的六十(60)日內向我們報告。

### 1.3.14 運送往返儲存倉庫的家居物品

於受保期間，若從閣下的物業運送至已註冊及認可的家居財物儲存倉庫，或從家具儲存倉庫運送至閣下的新居所期間，我們將賠償因以下原因引致閣下的家居物品之實際意外損失或損毀：

- (a) 火災、碰撞及 / 或運輸車輛翻倒；
- (b) 從運輸車輛中被盜；
- (c) 蓄意破壞、暴亂或民事騷亂；

惟閣下的家居物品必須由專業包裝工或搬運工進行專業包裝或搬運。自負額不適用於此保障。

適用於章節 1.3.14 運送往返儲存倉庫的家居物品的不保事項：

- (a) 易碎物品；
- (b) 刮痕、凹陷、擦傷或碎裂造成的損毀；

- (c) 在其他保險保單所承保的損失或損毀；
- (d) 任何未經專業包裝工或搬運工進行專業包裝的運輸；
- (e) 任何未由專業包裝工或搬運工安排和處理的運輸。

此外，若損失在章節 1.3.14 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。

### 1.3.15 移除瓦礫

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於受保期間，經我們書面同意後，我們將會支付閣下於移除瓦礫、拆卸及 / 或拆毀、支撐或支承任何閣下的家居物品的任何部份(包括需要從相鄰或鄰近的公共場所或私人土地移除瓦礫)所必須產生的合理成本及開支。自負額不適用於此保障。

### 1.3.16 寵物意外保障

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#### (A) 寵物 – 意外死亡或被盜

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於受保期間，若閣下的寵物發生下列情況我們將向閣下支付賠償：

- (a) 在香港遭受意外身體損傷而導致死亡；
- (b) 有人以武力強行闖入或逃出閣下的物業而被盜；或
- (c) 獸醫書面證明在香港因意外身體損傷而需要人道毀滅。

自負額不適用於此保障。

#### (B) 寵物 - 殯葬服務

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根據章節 1.3.16 (A)的受保事件，我們將向閣下支付獸醫或殯葬服務提供者就處理寵物遺體而所需的實際和合理的火化、殯葬服務費用及或處理費用。

適用於章節 1.3.16 寵物意外保障的不保事項：

- (a) 閣下的寵物在未經我們同意的情況下被人道毀滅，除非香港註冊獸醫認為有必要立即進行人道毀滅；
- (b) 閣下寵物的死亡並非因意外身體損傷而所必須進行的手術，亦非因香港註冊獸醫認為拯救其生命所必須進行的手術所引致；
- (c) 閣下的寵物由於繁殖、生病或疾病而死亡；
- (d) 閣下的寵物沒有植入微型晶片及 / 或領取牌照；
- (e) 在其他保險保單所承保的損失；
- (f) 閣下未能提供寵物擁有權的證明文件。

### 1.3.17 運送中新購入的家居物品

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於受保期間，我們將賠償閣下從香港境內經銷商新購入的家居物品在運送至閣下的物業的途中發生的意外導致實際損失或損毀。承保表所列之自負額適用於每次及每項索償。

適用於章節 1.3.17 運送中新購入的家居物品的不保事項：

- (a) 會腐爛的貨物；
- (b) 易碎物品的損毀；
- (c) 欠缺運單或提單、包裹收據、快遞收據或其他發送證據的運輸貨物，或任何運輸不是由專業人員進行；
- (d) 貴重財物；
- (e) 任何閣下可向賣方、運輸方或任何其他第三方索償並獲得賠償的物件；
- (f) 刮痕、凹陷、擦傷或碎裂造成的損毀。

### 1.3.18 購物保障及買家保障

#### (A) 購物保障

於**受保期間**購買及自購買日期起計六十(60)日內，倘若**合資格物品**因爆竊或搶劫而導致的**意外損失或損壞**，並於事發後二十四(24)小時內向警方報案及獲取有關調查報告，我們將向閣下支付**合資格物品**的**替換成本**。**承保表**所列之**自負額**適用於每次及每項索償。

##### 適用於(A) 購物保障的條款及細則：

- (a) **合資格物品**的最低價值須為港幣500元。
- (b) 閣下必須於事發後二十四(24)小時內向警方或有關當局報案並保留書面證明，例如警方調查報告，以便作索償之用。
- (c) **合資格物品**須已全額付款或按月供 / 用戶收費計劃付款，並且費用已直接從**信用卡**中扣除。
- (d) 將**合資格物品**置於無人看管的公共場所且其後並無尋回，則不構成爆竊或搶劫。

##### 適用於(A) 購物保障的索償條款：

倘若提出索償，閣下須向我們提供有關**合資格物品**的發票及 / 或收據副本，以證明該物品乃以閣下的**信用卡**付款，且閣下亦須按照要求向我們提供受損的**合資格物品**或向我們提供郵寄 / 運送的收據以作證明。

#### (B) 買家保障

於**受保期間**，若**合資格物品**符合以下條件，我們將向閣下支付**合資格物品**的損失：

- (a) 於預計到達日起計三十(30)日內未有送抵，惟須**貨運公司**或**零售商**或**商家**已確認並證實**合資格物品**無法尋回；或
- (b) **合資格物品**與**零售商**或**商家**於購買時的描述不符。

**承保表**所列之**自負額**適用於每次及每項索償。

##### 適用於(B) 買家保障的條款及細則：

- (a) **合資格物品**的最低價值須為港幣 500 元。
- (b) **合資格物品**須已全額付款或按月供 / 用戶收費計劃付款，並且費用已直接從**信用卡**中扣除。
- (c) 最新的運送資料、郵遞證明及由**貨運公司**、**零售商**或**商家**所提供的物流資訊。

##### 適用於(B) 買家保障的索償條款：

- (a) 若**合資格物品**未有送抵：
  - 1. 倘若閣下仍不滿意**零售商**或**商家**的答覆且不獲**零售商**或**商家**退款，則由自此時起計，閣下須於三十(30)日內向我們提出索償，而我們將會審查所有證據並確定索償是否有效。我們或會要求閣下提供以下證據，包括但不限於：
    - i. **零售商**或**商家**的資料；
    - ii. 閣下聯絡**零售商**或**商家**作初步了解之證明。
  - 2. 倘若閣下無法與**零售商**或**商家**取得聯絡，閣下將須向警方或有關當局報案，以保留向**零售商**或**商家**要求退款的權利。
  - 3. 倘若我們成功受理索償，我們將向閣下賠償**合資格物品**的購買價格，上限為**承保表**內本章節所列之最高保障金額(以較低者為準)。
- (b) 若閣下的**合資格物品**與**零售商**或**商家**的描述不符：
  - 1. 閣下須先與**零售商**或**商家**聯絡以解決該**合資格物品**與描述不符的問題。
  - 2. 倘若**零售商**或**商家**向閣下提供解決方案，例如接受退貨並由**零售商**或**商家**承擔費用，或予以更換，而閣下仍不滿意**零售商**或**商家**的答覆且不獲退款，則由自此時起計，閣下須於三十(30)日內向我們

提出索償，而**我們**將會審查所有證據並確定索償是否有效。**我們**或會要求閣下提供以下證據，包括但不限於：

- i. 有關**合資格物品**的描述；
  - ii. **零售商**或**商家**的資料；
  - iii. 閣下聯絡**零售商**或**商家**作初步了解之證明；
  - iv. 有關**零售商**或**商家**對**合資格物品**描述不符的證明。
3. 倘若**我們**成功受理索償，**我們將**向閣下賠償**合資格物品**的購買價格，上限為**承保表**內本章節所列之最高保障金額(以較低者為準)。

**適用於章節 1.3.18 購物保障及買家保障的不保事項：**

**我們將不賠償：**

1. 任何因**惡意破壞**造成的索償。
2. 任何**合資格物品**之損失而未有於事發後二十四(24)小時內向警方報案或未能提供警方調查報告(僅適用於(A) 購物保障)。
3. 任何**合資格物品**之損失因被置於無人看管的公共場所。
4. 任何**合資格物品**的磨損及損耗。
5. 任何因產品瑕疵或於保養期內製造商回收產品而造成**合資格物品**的損毀。
6. 任何**合資格物品**被置於車輛內的可見範圍之遺失或損壞(不論該車輛有否上鎖)。
7. 任何**零售商**或**商家**已準確地描述**合資格物品**。
8. 任何**合資格物品**被寄往的地址與運送單據上所列明的地址不同。
9. 任何下列之**合資格物品**：
  - i. 偽造或盜版商品。
  - ii. 股票、股份、債券、貨幣或電子貨幣。
  - iii. 使用商店信用或融資 / 租賃選項購買的商品，或未全額付款的商品。
  - iv. 被任何政府、海關或公共機構沒收或非法申報。
  - v. 珠寶手錶、貴金屬 / 寶石、藝術品、古董或收藏品。
  - vi. 機動車、電單車或小型電單車、水上運輸工具、飛機或其操作及 / 或維修保養所需的任何設備及 / 或零件。
  - vii. 二手 / 已用過的商品。
  - viii. 現金或其相對物品、旅行支票、門票或可轉換票據。
  - ix. 房地產。
  - x. 基於閣下需支付月費的產品或訂閱服務。
  - xi. 火器、動物、植物或易腐壞商品。
  - xii. 使用中的**運動器材**。
  - xiii. 飛機、無人機或航空裝置，不包括不可操縱的模型飛機或玩具風箏。
  - xiv. 電子資料。
  - xv. 食物。
10. 由任何政府、海關或公營機構沒收或毀壞。
11. 透過私下交易從自然人購買的**合資格物品**。

12. 購買後對**合資格物品**進行任何修改而造成的損毀。
13. 無法提供損失或損毀的證據。
14. 任何已根據(A) 購物保障及(B) 買家保障同時提出索償的損失。
15. 任何稅項、保險費或附加費。
16. 任何可從其他來源獲得賠償的損失。
17. 任何不屬閣下名下的**合資格物品**。
18. 任何可從**合資格物品**賺取的未來價值或收入。
19. 任何**合資格物品**於購買時已說明的任何瑕疵或誤差。

此外，若損失在章節 1.3.18 獲得保障的同時，亦可在其他保障範圍內得到賠償，閣下只能就其中一個保障提出索償。**承保表**所列之**自負額**適用於每次及每項索償。

#### 1.4 適用於章節 1 的不保事項

除本**保單**第七部份所載適用於本**保單**所有部份的一般不保事項外，**我們將不會賠償**下列情況或因而引致之財物的任何損失或損毀：

- (a) **建築物及 / 或閣下的物業**日久失修或存在結構性缺陷；
- (b) 滲水造成財物損毀，但直接因颱風、暴雨或風暴破壞樓宇結構引致缺口及因此導致雨水從**建築物及 / 或閣下的物業**缺口而引致的財物損毀除外；
- (c) **家居物品及個人物品**作正常處理或使用時所造成的損毀；
- (d) 因自然損耗、折舊、蠹患、害蟲、昆蟲蛀蝕、潮濕、生鏽、腐爛、腐蝕、受光或空氣或氣候環境影響而變化，或在染色、清洗、修理或重置的過程中所造成的損毀；
- (e) 由於電力引致或與機械有關的故障；
- (f) 不正當使用或不依照製造商指示使用，出廠時之物料、設計或規格有缺陷或設計不良；
- (g) 屬於閣下的家畜；
- (h) 凹陷、削損或刮花；
- (i) **閣下或在閣下的物業中居住、合法逗留的閣下的家庭傭工**蓄意或惡意造成的破壞；
- (j) 若物業有任何部分地方出租或轉租時於**閣下的物業**中遭偷竊，；
- (k) 在無人看管及未有上鎖的汽車內，或在未有關上車蓬的開蓬車內被偷竊的財物；
- (l) 由**閣下的家庭成員**在未獲授權情況下使用信用卡。

**我們將不會就下列財物損失或毀壞作出賠償：**

- (a) **建築物**的任何結構部份，包括電線、開關板、管道和排水系統；
- (b) 機動車、水上運輸工具、飛機及其他機動或電動車輛或單車；
- (c) 使用中的**運動器材**、眼鏡及隱形眼鏡、**手提電話**、手提電腦、傳呼機、可攜式裝置及平板電腦；
- (d) 電腦紀錄、證券股票及其他貴重文件；
- (e) 置於**閣下的物業**以外地方的唱片、錄音帶、鐳射碟及鐳射播放機；

- (f) 植物及動物；
- (g) 在**露天範圍**裝設的財物，包括天線、戶外家具及類似的戶外裝置；
- (h) 為**業務**、職業或專業用途而使用或擁有的財物；
- (i) **家居物品**：
  - a. **閣下的物業**於未得**我們**書面同意下連續三十(30)天或以上無人居住以致**家居物品**損失或毀壞，但因火災、閃電、爆炸、地震、颱風、風暴或**水災**等所造成者則屬例外；或
  - b. 適用於受保於「旅遊綜合保障計劃」保單 — 全年環球保障或全年中國保障之受保人：**閣下的物業**於未得**我們**書面同意下連續六十(60)天或以上無人居住以致**家居物品**損失或毀壞，但因火災、閃電、爆炸、地震、颱風、風暴或**水災**等所造成者則屬例外；或
  - c. 適用於受保於「旅遊綜合保障計劃」保單 — 單次旅程保障之受保人：**閣下的物業**於未得**我們**書面同意下連續一百八十(180)天或以上無人居住以致**家居物品**損失或毀壞，但因火災、閃電、爆炸、地震、颱風、風暴或**水災**等所造成者則屬例外；
- (j) 在其他保單中受保的財物；
- (k) 由發展商及 / 或前業主對**閣下的物業**已完成的室內裝修和改善部份及固定裝置；
- (l) **家居物品**原因不明地失蹤或被誤放；
- (m) **家居物品**因偷竊、爆竊或搶劫而導致損失而未有於二十四(24)小時內通知警方及獲取有關調查報告；
- (n) 在未使用或威脅使用武力或暴力的情況下發生的偷竊或搶劫而造成的損失，但不包括由**閣下**親眼目睹及**閣下**可以確定偷竊的確實時間和地點，並獲得警方調查報告的偷竊的行為；
- (o) 沒有強行進入或離開**閣下物業**的證據之爆竊而造成的損失；
- (p) 因液體導致任何種類的電腦、平板電腦或相機的損壞。

根據**承保表**內所列明適用於相關**保單**章節的**自負額**，**我們**不會支付對本章節所提出的每一項索償的首筆金額作出賠償。

## 章節 2 個人責任保障

我們在章節 2 的責任最高限額為**承保表**內所列明的相關最高保額，並受**承保表**內列明的相關分項限額約束。

### 2.1 適用於章節 2 的釋義

**意外財物損毀**指：

- (a) 因**意外**導致有形財產的實質損毀、破壞或損失，包括於**意外**後的任何時間損失其作用；或
- (b) 有形財產損失其作用而該有形財產沒有被實質損毀或破壞，惟該損失作用必須是由於其他有形財產因**意外**而受到實質損毀所致。

**補償**指**閣下**根據下列情況就他人的**身體損傷**及 / 或**意外財物損毀**支付或應付的款項：

- (a) 法庭判決包括有關利息；或
- (b) 經**我們**同意的和解，

包括任何**抗辯費用**。

**補償**不包括：

- (a) 加重的、懲罰性的或懲戒性的損害賠償；或
- (b) 法律規定的罰款或罰金(包括民事罰金)；或
- (c) 根據法律被視為不受保的任何事宜。

**抗辯費用**指在下列情況下產生的法律費用及支出及相關開支：

- (a) 抗辯任何法律訴訟；及 / 或
- (b) 要求分攤款項或討回款項；及 / 或
- (c) 調查、避免或減低或處理申索。

而有關費用是：

- (i) 經**我們**書面同意後由**閣下**產生；及 / 或
- (ii) 在**我們**進行任何法律程序後由**我們**產生。

**抗辯費用**不包括**閣下**的任何內部或經常開支或**閣下**的時間成本。

**僱傭常規**指**閣下**就聘用或即將聘用任何人士的任何不當或不公平解僱、否定自然公義、誹謗、誤導陳述或宣傳、性騷擾或歧視。

**事故**指一事件涉及連續或屢次大體相同的情況，而引致非**閣下**預期或計劃的**意外受傷**或**意外財物損毀**。就同一來源或起因而造成的一連串結果的所有事件被視為同一**事故**。

## 2.2 保障

### (A) 個人責任

若**閣下**在**受保期間**內於世界任何地方，因以下事故需依法向第三方承擔法律責任支付**補償**，**我們將對閣下任何單一(1)事件的補償進行賠償**，惟最高賠償金額為**承保表**所列之**總保額**：

- (a) **意外身亡或意外受傷**；及 / 或
- (b) **意外財物損毀**。

### (B) 寵物責任

若**閣下**在**受保期間**內於世界任何地方，因**閣下**的寵物導致以下事故需依法向第三方支付**補償**，**我們將對閣下任何單一(1)事件的補償進行賠償**，惟最高賠償金額為**承保表**所列每宗事故限額及每年總限額之**保額**：

- (a) **意外身亡或意外受傷**；及 / 或
- (b) **意外財物損毀**。

## 2.3 適用於章節 2 的不保事項

除本**保單**第七部份所載適用於本**保單**所有部份的一般不保事項外，**我們將不會保障**因下列情況直接或間接造成或與下列情況有任何相關的法律責任：

- (a) **襲擊或毆打**：**閣下**觸犯或受**閣下**指示的襲擊及 / 或毆打。本不保事項將不適用於為防止個人損傷或減低個人損傷的危險而進行的襲擊及 / 或毆打。
- (b) **建築物裝修**：**閣下**或代表**閣下**建設、建造、裝修、添置、修葺或拆毀任何**建築物**。因經常性損耗或修葺**閣下**的物業需付的修理或維修費用，不論**閣下**在任何租約條款下是否須負法律上之責任。
- (c) **業務或行業**：**閣下**除作為財物的持有人以外所進行的**業務**或行業或提供的任何服務，包括因物業產生的或以任何方式與物業相關的任何責任，儘管**我們會就意外財物損毀**導致的任何損失賠償最高達**保額**的金額。
- (d) **合約責任**：根據合約承擔任何義務，但在沒有合約的情況下於法律下存在的責任者除外。

- (e) 地殼移動：泥土或地殼移動，包括侵蝕、下陷、山崩或塌方。
- (f) 僱主責任：
  - (i) 閣下是或可能有權根據任何僱員賠償法例規定的任何基金、計劃、保單或個人保險獲得賠償，不論該等保險已生效與否；或
  - (ii) 根據任何工業裁決或協議或裁定的條文所施加的責任，而在沒有該等工業裁決或協議或裁定的情況下，有關責任是不會被施加的；或
  - (iii) 有關僱傭常規。
- (g) 罰款及罰金：罰款、罰金、懲罰性的、懲戒性的、償付的或加重性的損害賠償。
- (h) 貨品：由閣下或代表閣下的任何人士生產、安裝、處理、組合、加工、出售或供應的任何貨品。
- (i) 誹謗：任何誹謗行為。
- (j) 海事結構：持有、操作或保養任何海事結構，包括任何碼頭、防波堤、浮船塢。
- (k) 閣下的個人損傷或任何正為閣下提供服務人士所遭受的身體損傷。
- (l) 專業責任：閣下或代表閣下的任何人士提供或未能提供專業意見或服務。
- (m) 閣下持有或以閣下名義持有的財物，在以下情況發生的財物損失或損毀：
  - (i) 由閣下持有；或
  - (ii) 由閣下合法控制；或
  - (iii) 正為閣下提供服務人士所控制。
- (n) 汽車、拖車、船隻及飛機：持有、操作或維修下列各項或從下列各項進行裝卸：
  - (i) 汽車；
  - (ii) 蓬車或拖車；
  - (iii) 飛機或氣墊船；或
  - (iv) 船隻。
- (o) 運動活動：閣下參加任何運動活動。
- (p) 任何家畜引起的責任，但不包括閣下的寵物。
- (q) 其他擁有權：除**承保表**中所註明之閣下的物業以外，身為任何其他土地或**建築物**的業主或住戶。
- (r) 在**意外**事故發生時，閣下已在**香港**以外居住超過連續三十(30)日。但如果閣下同時受保於**我們**簽發的旅遊綜合保障計劃保單，側延長以上日數並以兩者較長者為準。

## 2.4 責任限額

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**我們**就於**受保期間**內發生的所有**事故**而代表閣下支付的**補償**(包括**抗辯費用**)不可超逾**承保表**內指定的金額。

## 2.5 抗辯申索

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**我們**有權以閣下的名義及代表閣下協商、抗辯或解決任何向閣下提出的索償，並將在任何索償的任何法律程序或和解過程中行使絕對酌情權。為免除疑問，**我們**代表閣下賠償最高達**保額**包括為抗辯任何針對閣下的索償所招致的**抗辯費用**。

## 章節 3 附加保障

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**我們**在**章節 3**的責任最高限額為**承保表**內**章節 1**所列明的相關最高**保額**，並受**承保表**內列明的相關分項限額約束

### 3.1 翻新、裝修或改建延伸條款

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在**受保期間**，我們將承保因註冊承包商在閣下的物業內進行室內裝修、裝飾、修理或改建時導致**家居物品**的**意外損失或意外損毀**，前提是：

- (a) 就物業進行的所有工程合約的總價值不可超過港幣 500,000 元；
- (b) 合約的總期限為連續九十(90)日內；
- (c) 閣下的損失無法向承包商討回，並且不受其他保險的承保。

我們支付的最高金額不得超過**章節 1** 所列明的相關最高**保額**及**承保表**內列明的相關分項限額。

承保表所列之**自負額**適用於每次及每項索償。

### 3.2 家居及旅遊延伸條款

本**保單**延伸條款保障下，在 1.3.4 物業以外的個人物品及貴重財物下，**個人物品及貴重財物**之最高賠償限額將自動增加至**承保表**內本章節所列的賠償限額，惟本延伸條款只適用於在**受保期間**，閣下於海外旅遊，而該旅遊期間有效受保於我們簽發的「旅遊綜合保障計劃」保單。此伸延保障不會提供分攤賠償，而只會賠償該「旅遊綜合保障計劃」保單支付賠償**個人物品或貴重財物**後剩餘之索償金額，而該剩餘之索償必須於該「旅遊綜合保障計劃」有效受保期間招致而未能於該旅遊保單內索償。

承保表所列之**自負額**適用於每次及每項索償。

## 章節 4 個人意外

我們在**章節 4** 的責任最高限額為**承保表**內所列明的相關最高**保額**，並受**承保表**內列明的相關分項限額約束。

在**受保期間**，若閣下於閣下的物業內因**意外爆炸、意外火災、偷竊、搶劫或爆竊**而直接導致閣下**完全永久傷殘**或**意外**發生後在一百八十(180)日內**意外死亡**，我們將向閣下或其法定遺產代理人作出賠償，惟上限為**承保表**內所列之**保額**。倘若事故中涉及多於一(1)人，每人可獲的賠償乃以本節適用之最高賠償限額平均數為準。

### 4.1 家居改善工程

閣下於世界任何地方在**受保期間**內因**意外受傷**導致**永久傷殘**，經由醫生證明該情況並建議對閣下的物業進行無障礙設施改善工程，以便閣下能獨立生活，我們將就該改善工程的實際金額作出賠償，惟該賠償受**承保表**內列明的相關最高分項限額約束。

## 章節 5 自選保障：建築物保障

我們將保障擁有該物業的**保單持有人**，及擁有該**建築物**之金錢權益的任何銀行或金融機構，惟閣下需通知我們他們所擁有的權益，並佐以文件以證明。而根據本**保單**的條款，我們將就閣下物業的**建築物**在**受保期間**因發生**意外**而造成的實質損失或損毀提供最高為**承保表**內註明之**保額**的賠償。

承保表所列之**自負額**適用於每次及每項索償。

除本**保單**第七部份所載適用於本**保單**所有部份的一般不保事項外，我們將不會賠償就下列情況或因而引致**建築物**之損失或損毀：

- (a) 欠佳的設計、建造、手工或使用有問題的物料及設備。
- (b) 正進行裝修或修葺。
- (c) 沒有進行例行維修。
- (d) **建築物**內的租戶或任何合法佔用者造成的**惡意破壞**。
- (e) **物業**無人居住超過連續九十(90)日。
- (f) 滲水造成財物損毀，但直接因颱風、暴雨或風暴破壞樓宇結構引致缺口及因此導致雨水從**建築物**缺口而引致的財物損毀除外。

## 第七部分 一般不保事項

除非另有指明，本部份的一般不保事項適用於閣下的整份保單。閣下的保單不保障：

1. 因下列情況引致或以任何方式與下列情況相關的損失或損毀：
  - (a) 損耗、生鏽、侵蝕、腐壞及貶值；
  - (b) 機械、電氣或電子故障，包括由於任何能源供應不正常(包括供率驟增)引致的故障，但由於電動摩打燒壞或任何其他指定事件引致的故障除外；
  - (c) 霉菌及大氣或氣候情況，但雨水、雨雪及冰雹除外；
  - (d) 家居動物；
  - (e) 害蟲、昆蟲或被雀鳥及其他野生動物啄穿、抓穿、咀嚼、進食或築巢；
  - (f) 清潔、修理、復原或修整任何物品的任何程序；
  - (g) 涉及使用熱力或化學品的任何程序；
  - (h) 租戶、房客、寄宿者、付租金的客人及他們的到訪者，由盜竊罪、偷竊、惡意破壞、故意破壞或蓄意或故意的行為而引起；
  - (i) **建築物**、地基、牆壁或鋪築過的地面發生的下陷、收縮、震盪或膨脹；
  - (j) 欠佳手工、固有缺陷、設計錯誤或遺漏、結構缺陷及欠佳設計；
  - (k) 因損耗引致的牆壁、地板或屋頂滲水或滲漏；
  - (l) 樹木、灌木、植物及草的根部；
  - (m) 侵蝕；
  - (n) 霉、霉菌、真菌、黴菌毒素、軟腐病、乾腐病或細菌；
  - (o) 疾病、冠狀病毒感染、廣泛地區流行的病及 / 或流行性感冒；
  - (p) 任何形式的違法施工、翻新、改造工程；
  - (q) 任何既遂或未遂的違反法律的行為；
  - (r) 由液體導致任何種類的電腦、平板電腦或相機損壞；
  - (s) 被刮花或外觀損壞而並不影響其正常操作或使用；或
  - (t) 任何功率超過 1,000(一千)瓦的電子充電器。
2. 任何間接損失。
3. 因戰爭、未宣佈的戰爭、叛亂、內戰、暴動、革命、侵略、軍事武力或個人的戰爭行為，或軍事目的之破壞或財產佔領所造成的損失或損毀或責任。
4. 因任何政府、公共機關、或其他機關的財產充公、破壞或扣押所造成的損失、損毀或責任，但任何與**暴亂或民事騷亂**相關的、或任何類型的救援除外。
5. 核子或輻射污染引起或造成的損失或損毀或責任。
6. 因污染及移走因而產生的污染物而引起或與之相關的損失或損毀或責任。
7. 因任何物件、器材、電腦或電腦軟件(包括但不限於韌體、數據及嵌入式晶片)未能正確識別、詮釋或處理任何數據或任何物件、器材或電腦軟件在未能正確識別、詮釋或處理任何數據後正確運作所引起的損失或損毀或責任。
8. **閣下的建築物**在進行任何建設、拆卸、裝修或維修的過程中，**閣下的建築物**發生的任何損失或損毀。
9. 因電腦程式或給電腦的指示出現任何錯誤所引致或與之相關的損失或損毀或責任。
10. 任何由無人機引致或與無人機相關的損失、損毀或責任。

11. **閣下或得閣下同意代表閣下行事的人士蓄意引致的損失或損毀或責任，包括因取去或挪用家居物品或貴重財物所造成的損失。**
12. 因送遞或郵寄時對閣下的家居物品造成的損失或損毀。
13. 因山崩或下陷引致的地殼移動所造成或與之相關的損失或損毀，除非該等損失或損毀是在下列一項或多項事件的二十四(24)小時內發生的直接結果：
  - (a) 風暴、雨水或強風；
  - (b) 地震；
  - (c) 爆炸；或
  - (d) 固定管道或裝置的漏水。
14. 石棉或石棉產品或任何含有石棉(不論石棉的形式或數量)的材料。
15. 因閣下未能使用一切合理的途徑在任何損失或損毀發生前、發生時或發生後保護或維護受保的財物而引起或與之相關的損失或損毀或責任。
16. 因下列情況而直接或間接引起、導致或與之相關的損失、損毀、成本或任何性質的開支；
  - (a) 任何恐怖活動；或
  - (b) 為控制、防止、鎮壓、報復或以任何方式回應或與恐怖活動有關而採取的任何行動，不管任何其他促成的原因或事件。
17. 未能歸因為由本保單承保事件所造成或引致的任何損失或損毀。
18. 因原因不明地失蹤或被誤放所造成或引致的任何損失或損毀。
19. 於本保單首個生效日起計的首三(3)天內，如香港天文台發出 8 號或以上警告信號的熱帶氣旋，我們將不會就此熱帶氣旋所引致的損毀或損失作出任何賠償。
20. 任何可從其他來源獲得賠償的損失。
21. 受保物業之樓齡在生效日已超逾六十(60)年。
22. 閣下的任何非法、故意或惡意行為。
23. 在受保期間之外發生的任何損失，或任何損失發生閣下未有支付保費的受保期間。
24. 閣下的物業涉及任何形式的轉租或分拆單位(劏房)。

## 第八部分 一般條款

本部份的條款適用於閣下的整份保單。

### 1. 風險變動

在本保單開始後出現任何風險變動，閣下必須在知悉該等風險變動後即時書面通知我們。閣下必須通知我們的變動包括：

- (a) 物業變更；或
- (b) 物業被空置超過連續三十(30)日；或
- (c) 閣下不再持有物業的權益；或
- (d) 佔用物業的性質或其他影響物業的情況出現變動，以致增加本保單項下承保的任何風險；或
- (e) 閣下破產、受破產管理狀態、受管理狀態或被清盤。

假如我們接納變更後的風險，閣下必須向我們支付其要求的任何額外保費。

### 2. 香港法律及司法管轄權

閣下的保單是受香港法律管轄，所有與閣下的保單有關之法律訴訟必須在香港法院提出。

### 3. 調解

凡出現因本保單產生或與本保單有關的任何爭議或歧異，均須首先提交香港和解中心(HKMC)，並按當時有效的香港和解中心的調解規則進行調解。閣下通過調解真誠地嘗試解決爭議是閣下追討索償的先決條件。倘若閣下未於我們作出理賠決定後六(6)個月內將爭議提交調解，則將被視為撤回或放棄該索償，而閣下對我們就同樣索償的追討將不獲受理。

### 4. 法律訴訟

除非調解失敗，否則不得針對本保單提起任何法律訴訟，並且於我們作出理賠決定之日起十八(18)個月後不得對我們提出有關訴訟。若閣下超過上述時限，則將被視為撤回或放棄該索償，而閣下對我們就同樣索償的追討將不獲受理。

### 5. 轉讓

如果閣下出售或轉讓本保單，或將其用於任何其他目的，我們將不予承認。在任何時候，閣下必須確保本保單由閣下持有或控制之下。

### 6. 授權代表

閣下同意代表閣下填寫投保書的人士是獲授權代表閣下提供及收取資料。由閣下的授權代表採取或應已採取的行動應被視為閣下的作為或不作為。

### 7. 保單變更

保單內的任何變更必須經我們的書面同意後方可生效。除非我們書面同意作出豁免，否則本保單的任何部份不得被視為豁免。

### 8. 文書上的錯誤

如在本保單內有任何筆誤，將絕對不會令閣下原已生效的保險失效，亦不會令有關已失效的保險繼續生效。如本保單並非因我們的筆誤而被終止，則不能被重新續訂。

### 9. 遵守保單條文

未能遵守本保單所載的任何條文將使本保單項下的所有索償無效。

### 10. 我們承擔責任的先決條件

我們就本保單項下的任何保障所承擔的責任嚴格以下列各項為條件(即先決條件)：

- (a) 閣下向我們提供的陳述及資料的真實性；及
- (b) 閣下適當遵守及履行任何應由閣下作出或遵守本保單的所有條款及條件。

### 11. 香港貨幣

本保單項下的保費及保障以港元支付。所有由閣下向我們支付、及由我們支付予閣下或在閣下的保單內的其他人士的款項均須以港元結算。

### 12. 自負額

閣下必須就閣下根據保單提出的各項索償，支付承保表或本保單內註明適用的任何自負額。閣下需在我們提出要求時支付自負額。

如任何事件引致的申索與本保單內多於一個章節有關，閣下必須支付最高的適用自負額。

### 13. 詐騙

本保單是基於閣下在投購保單時所提供資料的完整性及準確性而簽發。如當中有任何詐騙、蓄意的失實聲明或隱瞞，又或閣下或閣下的法律代表提出不誠實的索償時，我們會立即取消並作廢本保單及不會支付任何保障。

#### 14. 性別

根據文意要求，本文件內使用的男性代名詞同時包括女性的涵義。

#### 15. 地理區域限制

除非另有註明，本保單提供的所有保障只涵蓋於香港境內遭受的損失或損毀。

#### 16. 檢查及挽回物品

如閣下提出索償，我們可檢查財物或物品。雖然我們無義務管有任何受損毀的財物或物品，但我們保留權利管有任何受損毀的財物或物品。

我們以更換財物或物品或支付款項的方式就索償作出賠償後，我們有權取得及保留任何被挽回或被討回的財物或物品。我們可出售財物或物品及保留所得款項。

#### 17. 利息

除非另有註明，我們根據本保單應付的任何金額概不付任何利息。

#### 18. 釋義

本保單及承保表及所附的部份及任何修訂或批註應被視為同一份合同一併閱讀，於本保單或承保表的任何部份內附有特定涵義的任何用語或詞句應在其每次出現時均附有該特定的涵義。

請注意本保單以英文版本為正式版本，本保單同時設有中英文版本，惟僅供閣下作參考而已。因對本保單內任何地方的詮釋而引起任何爭議，均以英文版本為準。

#### 19. 虛假陳述

假如閣下作任何虛假陳述、錯誤描述、不披露或隱瞞任何情況的，而該等虛假陳述、錯誤描述、不披露或隱瞞是重大或與下列事項有關的，則本保單可被註銷：

- (a) 閣下的風險經驗及索償歷史；或
- (b) 閣下的保險記錄，包括以往被拒絕提供保險保障。

#### 20. 信託或轉讓及第三方權利通知

我們不受任何信託、押記、留置權、轉讓或其他處理或與本保單有關的任何通知約束或影響。

除非法律賦予任何權利，一名不屬於本保單當事人的人士不得享有執行本保單任何條款的權利。

#### 21. 其他保險

在法律許可的範圍內，如其他保險適用於受保的損失，我們將只支付其他保險不保障的數額，並受本保單的賠償限額限制，除非其他保險以書面訂明該保險是閣下的保單所提供賠償的自負額。

假如閣下根據閣下的保單提出索償，閣下必須通知我們任何其他可能保障該損失或損毀或意外的保險。

#### 22. 重複保障

- (i) 閣下不能受保多於一份「家安心家居保障計劃」保單保障。假如閣下受多於一份保單保障或由我們承保相同保障的其他保單，我們將就最高賠償額的保單作出賠償，並支付其後的保障。
- (ii) 如閣下受保多一份由我們承保的保單，且所有保障均是相同的，則僅保留生效期較早的保單，而其他保單則由生效日起取消，並不付利息下退還保費。

#### 23. 支付索償

閣下一旦收到就本保單所支付的保障，在任何情況下應被視為我們已就該保障履行最終及所有責任。

若閣下身故，根據本保單應向閣下支付的一切保障應付予閣下的遺產。

#### 24. 部份損失後不設保單復效

當我們根據閣下的保單賠償家居物品的部份損失或損毀的索償時，保額將按每次索償的損失金額減少，且不得超過總保額。

#### 25. 保費

若我們更改閣下的保費，我們會在生效日前三十(30)天把書面通知寄到閣下府上。

#### 26. 合理小心

閣下必須：

- (a) 採取所有合理措施使本保單項下的一切受保財物保持良好狀況及進行妥善維修；
- (b) 採取一切合理的預防措施以防止或減少受本保單保障之損失、損毀、破壞、責任、補償、成本或開支；及
- (c) 遵守法律及任何機關施加的一切義務及規例。

#### 27. 續保

適用於以月繳作繳付保費方式：

在我們認為有需要的情況下，我們有權於續保時修訂保費、保障範圍、條文及條款，本保單將在每一續保日時自動續保一(1)個月。如任何一方在任何受保期間完結時不想繼續續保，必須依據第九部分一取消閣下的保單之條款發出取消保單通知。

如任何一方均無發出該等通知，在閣下於續保日時繼續付保費的情況下，一份具有相同條款及細則的保單將由續保日起自動生效一(1)個月。

適用於以年繳作繳付保費方式：

在我們認為有需要的情況下，我們有權於續保時修訂保費、保障範圍、條文及條款，本保單將在每一續保日時自動續保一(1)個月，直至由生效日或此後的週年日起計十二(12)個月完結時。如任何一方在任何受保期間完結時不想繼續續保，必須依據第九部分一取消閣下的保單之條款發出取消保單通知。

如任何一方均無發出該等通知，在閣下於續保日時繼續付保費的情況下，一份具有相同條款及細則的保單將由續保日起自動生效一(1)個月，直至由生效日或此後的週年日起計十二(12)個月完結時。

#### 28. 維修或替換

如損失或損毀的物品屬無法修復或其型號已不存在於市場上，我們將保留決定支付合理的更換費用的權利(有可能會根據該物品的折舊或其他參考因素)。

#### 29. 代位權

如我們根據本保單作出賠償，我們可代位取得閣下的一切分攤、賠償或追討的權利。未經我們的事先書面同意，閣下不得放棄分攤、賠償或追討的任何權利或就分攤、賠償或追討的任何索償作出和解。閣下必須作出一切事情及簽署一切文件以使我們能以閣下的名義就該等分攤、賠償或追討提出起訴。

如閣下與另一名人士或公司(該名人士或公司有責任向閣下賠償保險合同承保的任何損失或損毀)協定閣下不會向該名人士尋求討回該等損失或損毀，則我們在法律許可的情況下不會就該等損失或損毀向閣下提供保障。

#### 30. 遵守適用的經濟及貿易制裁條例

當經貿制裁規定或其他法規禁止**我們**提供保險(包括但不限於支付賠償金)時，本保險將不適用。**保單**中其他所有條款與細則均維持不變。

安達保險香港有限公司是一間美國公司 - Chubb Limited 的子公司 / 分公司，Chubb Limited 是紐約證券交易所上市公司，因此除了歐盟、聯合國和香港的貿易限制之外，安達保險香港有限公司還受某些美國法律和法規的約束，這些限制可能禁止其向某些個人或實體提供保險或支付賠償，或者對某些類型的活動及某些國家 / 地區例如古巴提供保障。

## 第九部分 取消閣下的保單

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### 閣下在何時可以取消保單

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**閣下**可於任何時間取消保單。

在無任何索償之情況下，無論**閣下**基於任何理由對本保單不滿，**閣下**有權於免費保單審閱期(生效日後十五(15)天內)取消本保單，並可獲退還所有已繳付的保費。在此情況下，本保單將被視為於生效日起失效，而**我們**毋須為任何賠償負責。

在免費保單審閱期後，如**閣下**欲取消閣下的保單，必須在三十(30)天前以書面通知**我們**。在**我們**收到閣下的書面通知後，取消保單的生效時間將在下一個續保日的香港時間凌晨十二時(12:00 a.m.)(午夜)開始。

如**閣下**取消保單，則**我們**在減去**受保人**於仍受保障期間所需繳付的保費後，餘數會退回給**閣下**。然而，如**我們**在閣下的保單之上一個週年日後曾支付保障，則**我們**不會退回任何保費。

### 我們在何時可以取消閣下的保單

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**我們**可以隨時通過提前三十(30)天向**閣下**發出書面通知來取消本保單。**我們**會向**閣下**在**我們**文件案內的地址發出書面通知。如**我們**取消閣下的保單，則在減去**受保人**於仍受保障期間所需繳付的保費後，餘數會退回給**閣下**，惟不付任何利息。然而，如**我們**在閣下的保單之上一個週年日後曾支付保障，則**我們**不會退回任何保費。

除了在本保單內或在其他情況下給予**我們**應有的合法權利外，當出現以下情況時，**我們**會書面通知**閣下**取消保單，如任何**受保人**或**閣下**或**閣下**的法律代表：

- (a) 違反絕對誠信的責任；或
- (b) 在達成閣下的保單合約的事前或當時作出失實聲明；或
- (c) 違反閣下的保單的條文；或
- (d) 在任何保險保單內提出虛假的索償；或
- (e) 在閣下的保單內規定**閣下**必須通知**我們**而**閣下**卻沒有遵行的任何行為或疏忽；或
- (f) 作出任何行為或疏忽，令**我們**可根據閣下的保單內規定拒絕支付全部或部份賠償。

### 自動取消

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當在保費到期的三十一(31)天內**閣下**不繳付保費，**閣下**的保單將會被自動取消，而**我們**亦毋須發出任何書面通知，該取消保單將由**閣下**向**我們**停止繳付本保單的保費的當天生效。

如果**閣下**指定的恒生銀行帳戶所收取的保費未能支付或**閣下**不再是該帳戶的持有人，除非**閣下**使用其他付款方式支付保費，否則**閣下**的保單將被取消。

如果首期保費並未繳交，本保單將被視為自本保單生效日起自動無效，**我們**將不承擔任何在此之下的理賠責任。

## 第十部分 索償

### 適用於所有部份的索償條件

#### 1. 閣下必須做的事：

在發生任何會引致或可能引致索償的任何損失或損毀或損傷時，或在發生任何會引致或可能引致章節 2 - 個人責任保障索償的任何事件或事故時，**閣下**必須自費作出以下行動：

- (a) 採取所有合理的預防措施以避免進一步的損失或損毀或損傷；
- (b) 即時按本保單起首所列的地址及索償中心電話通知我們；
- (c) 於二十四(24)小時內通知警方如本保單保障的任何財物的遺失、被盜或發生惡意破壞或故意破壞的事故；
- (d) 採取一切合理的預防措施以討回遺失或被盜的財物並減低索償；
- (e) 在未經我們同意的情況下，不處置任何受損毀的財物；
- (f) 在未經我們同意的情況下，不安排修理或替換任何與索償相關的任何受本保單保障的財物；
- (g) 在十四(14)日內填妥及提交索償表格，並提供我們就調查及核實索償之目的可能合理地要求的所有必須證明文件，包括但不限於：
  - (i) 損失或損毀或損傷的完整書面詳情；
  - (ii) 任何相關的收據、證明及其他所有權證明；
  - (iii) 所有有關損失或損毀財物的估值；
  - (iv) 所有法庭簽發的文件，包括任何申索陳述書、傳票、展開過程、交相申索或第三方通知；
  - (v) 如索償涉及**惡意破壞或故意破壞**、爆竊或偷竊，則包括所有財物檢查報告及財物清單；
  - (vi) 從警方、運輸公司或其他機關取得有關**意外**、損失或損毀的報告；及
  - (vii) **我們**就評估索償所合理要求的所有醫療及其他證明及證據。
- (h) 即時向我們提供所有顯示**閣下**被提出或**閣下**可能被提出索償的所有文件(包括但不限於通信、任何函件或付款要求書或投訴書、任何令狀或法庭文件、任何傳召出庭令或任何正式的法律文件)；
- (i) 在未取得我們的事先書面同意前，不就任何針對**閣下**的索償承認責任、提出同意和解或支付任何金額以達成和解；及
- (j) 就任何針對**閣下**的索償協助**我們**提出抗辯。

#### 2. 適用於章節 1 – 家居物品保障及章節 5 – 自選保障：建築物保障：

- (a) 如**我們**決定應支付本章節項下的索償，**我們**將選擇：
  - (i) 修理或替換受損毀的**家居物品**，或向**閣下**支付合理**替換成本**(惟在任何情況下，**我們的**責任均不得超逾**家居物品保障的保額**)；或
  - (ii) 向**閣下**支付**家居物品保障**，不可超逾**承保表**所列**保額**。
  - (iii) **我們**就**貴重財物**的損失或損毀賠償的最高金額不得超逾**承保表**規定的金額或**保額**，兩者以較低者為準，減扣**承保表**內就上述物品列明的**自負額**，並將**貴重財物**所適用的相關限額考慮在內。
- (b) **我們**可選擇為受損毀的**家居物品**作出更換或支付合理的**替換成本**，**我們**將按「以新代舊」的基礎處理(即置換同類型物品而毋須扣除損耗)。對於**個人物品**將扣除損耗和折舊費用。對於擁有十(10)年或以上的**發展商提供的設備及裝置**(前提是**發展商提供的設備及裝置**的自選保障已生效)，將扣除損耗和折舊費用。**我們**將按**我們的**決定，向**閣下**提供替換物品或向**閣下**支付賠款。

- (c) 若就意外損毀提出維修索償時，此維修服務必須由該物品之官方授權認可之維修服務中心或認可維修商或獲到**我們**同意的維修商提供。

如官方授權認可之維修服務中心或認可維修商或獲到**我們**同意的維修商判斷該物品屬無法修復或其型號已不存在於市場上，**我們**將保留決定支付合理的更換費用的權利(有可能會根據該物品的折舊或其他參考因素)。

- (d) 假如在本章節項下應賠償的損失或損毀的物件是對裝、套裝、系統、系列或更大型組件的一部份，**我們**將只會按該損失或損毀物件本身佔整體對裝、套裝、系統、系列或更大型組件的價值作出賠償。**我們**不會就該物件於構成對裝、套裝、系統、系列或更大型組件的一部份時可能擁有的任何特別價值或對餘下部份造成的任何貶值支付任何補貼。

3. **自負額**適用於本章節的每次及每項索償，**自負額**的詳情已於**承保表**上列明。
4. 在**閣下**就**意外受傷**提出索償後，**我們**可能在合理需要時要求**閣下**進行醫療檢查，費用由**我們**承擔。**我們**亦會在合理需要時安排驗屍。
5. 如**閣下**未能在指定時限內向**我們**作出通知，但**閣下**可向**我們**滿意地顯示**閣下**已盡合理可能盡早作出通知(連同證明文件及資料)，則未能按時通知**我們**的情況不應使索償失效，惟**閣下**必須在發生任何損失、損壞或損傷的三十(30)日內，或**閣下**首次發現發生符合本**保單**章節 2 - 個人責任保障針對**閣下**的潛在索償時，以及不遲於**受保期間**結束後的三十(30)日內作出有關通知。
6. 在處理索償時，**我們**可能會進行**我們**認為必要的任何調查，**閣下**應全力配合該調查。若**閣下**未能配合**我們**的調查可能會導致索賠被拒絕。

## 第十一部分 解決爭議

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如閣下對購買本保單的過程或對本保單的任何其他方面有不滿時，請聯絡：

客戶服務經理  
安達保險香港有限公司

香港鰂魚涌英皇道 979 號太古坊一座 39 樓

電話 +852 3191 6222

電郵 [cs.hk@chubb.com](mailto:cs.hk@chubb.com)

我們已依據《承保商專業守則》建立了一套內部流程處理爭議。在任何時候，如閣下有一些關於我們產品或服務的投訴仍未獲解決，歡迎閣下使用我們的內部解決爭議程序。屆時閣下的查詢或投訴將會獲得調查，而我們亦會在十五(15)個工作天內回應。若閣下或受保人對我們最終的回應不滿意，可免費向保險投訴局尋求協助。聯絡資料如下：

### 保險投訴局

香港灣仔駱克道 353 號三湘大廈 29 樓

傳真 +852 2520 196

## 第十二部分 個人資料收集聲明

安達保險香港有限公司(「我們」)竭力確保客戶(「閣下」)向我們提供用以識別閣下的資料(「個人資料」)時，有信心我們於處理閣下的個人資料時會適度地保密及保障相關資料。

本個人資料收集聲明陳述我們所收集的個人資料類別、收集個人資料的目的、使用及披露個人資料的情況及場合，以及閣下查閱及更改個人資料的方法。

我們從閣下所收集的個人資料類別視乎閣下與我們的關係。個人資料可包括但不限於閣下的姓名、出生日期、身分證明文件號碼、聯絡資訊(例如：電話號碼、地址、電郵地址)、財務資訊和帳戶詳細資訊、醫療記錄、保險索賠記錄、照片以及閣下的位置資料。當閣下向我們提供他人的個人資料時，閣下須確認已獲得該人的同意並有權提供該等個人資料予我們使用及作轉讓用途。

### a. 收集個人資料的目的

我們收集及使用閣下個人資料的目的是為了訂立、分銷及提供具優勢的保險產品及服務，包括用作處理閣下購買保險產品的投保申請，執行和管理閣下及我們在該等保單保障下的權利及責任。我們亦會收集個人資料以辨識產品及服務予閣下，進行研究、調查及分析，及促銷我們的產品及服務。我們可要求閣下必須提供指定的個人資料，以讓我們能夠提供產品及 / 或服務。

### b. 直接促銷

我們只會在得到閣下的同意下使用閣下的姓名、電話、地址及 / 或電郵地址，透過郵寄、電郵、電話或短訊方式聯絡閣下，以促銷我們的保險產品及服務。閣下可透過書面方式郵寄至以下地址聯絡我們的資料保護主任以終止直接促銷。

### c. 個人資料的轉讓

我們會將所有收集到的個人資料予以保密，並不會在未取得閣下同意的情況下將閣下的個人資料披露或轉讓給第三者，但在任何適用的法例下，閣下的個人資料可能會披露或轉讓至以下各方(不論在香港特別行政區或海外)：

- i. 協助我們達成以上第 a 及第 b 段所述目的之第三者。例如：與我們相關的員工、承辦商、代理、服務供應商及其他人士，如數據分析人員、專業顧問、損失評估人員及索償調查員、醫生及醫療服務提供者、專家顧問、緊急支援服務提供者、信貸局、政府機構、分保人及分保經紀；
- ii. 我們的母公司及附屬聯營公司；
- iii. 相關的保險中介人；及
- iv. 維持公眾安全及法紀的相關人員。

### d. 查閱及更改個人資料

閣下可查閱及更正曾給予我們的個人資料。除非我們有適當的法律原因拒絕相關要求，否則我們會按閣下的要求辦理。請透過電郵([Privacy.HK@chubb.com](mailto:Privacy.HK@chubb.com))或郵寄方式(香港鰂魚涌英皇道 979 號太古坊一座 39 樓)聯絡我們的資料保護主任。如我們在辦理閣下要求時需徵收費用以提供資料，所收取的費用將會在合理的水平。我們不會因更新閣下的個人資料而向閣下收取費用。

### About Chubb in Hong Kong SAR

Chubb is a world leader in insurance. With both general and life insurance operations, Chubb has been present in Hong Kong SAR for more than 90 years via acquisitions by its predecessor companies. Its general insurance operation in Hong Kong SAR (Chubb Insurance Hong Kong Limited) is a niche and specialist general insurer. The company's product offerings include property, casualty, marine, financial lines and consumer lines designed for large corporates, midsized commercial & small business enterprises as well as retail customers. Over the years, it has established strong client relationships by being consistent and responsive, by offering market leading claims services and innovative products, and providing market leadership built on financial strength.

More information can be found at  
[www.chubb.com/hk](http://www.chubb.com/hk).

### Contact Us

Chubb Insurance Hong Kong Limited  
39/F, One Taikoo Place  
979 King's Road  
Quarry Bay, Hong Kong  
O +852 3191 6800  
[www.chubb.com/hk](http://www.chubb.com/hk)

### 關於安達香港

安達為領先全球的保險公司，經營一般保險及人壽保險業務，透過收購其前身公司已立足香港特別行政區超過 90 年。安達香港的一般保險業務(安達保險香港有限公司)為大型及中小企業客戶、以及個人客戶設計及提供特定的保險產品，包括財產險、責任險、海上險、金融險和個人保險服務。多年來，安達保險憑著其雄厚財務實力及市場領導地位，開創新的保險產品，提供優質理賠服務，建立長遠穩健的客戶關係，與時並進。

如欲獲取更多資料可瀏覽  
[www.chubb.com/hk](http://www.chubb.com/hk)。

### 聯絡我們

安達保險香港有限公司  
香港鰂魚涌英皇道 979 號  
太古坊一座 39 樓  
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